Operational Guidelines for Incentives and Offerings under Karnataka Data Centre Policy 2022

Department of Electronics, IT, Bt and S&T

Government of Karnataka

Contents

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1. General Instructions

1.1. Acknowledgement

The Government of Karnataka (GoK), through Karnataka Innovation and Technology Society (KITS), vide Government Order No. ITBT/79/ADM/2021, dated 7th May 2022 has notified the Karnataka Data Centre Policy 2022. This Policy will remain in force for a period of five years with effect from 7th May 2022 or till the time a new Policy is announced.

The Policy offers support through various incentives and offerings to Data Centre industry located within the State. In order to support the ecosystem and administer policy implementation, KITS, Department of Electronics, Information Technology (IT), Biotechnology (Bt) ("Department"), Government of Karnataka has prepared the operational guidelines for Karnataka Data Centre Policy 2022 ("Policy"). The operational guidelines elaborate various requirements and detail the procedures to be followed for availing the incentives, concessions and subsidies provided under the Karnataka Data Centre Policy 2022.

1.2. Introduction

The incentives and offerings provided under the Policy shall be administered as per these Operational Guidelines. The definitions, formats, and procedures for claiming and sanctioning of various incentives, concessions and subsidies have been explained in this Operational Guidelines to support the applicants, as well as the administration.

Subsidy amount shall be released/disbursed on first come first serve basis depending upon the budget allocated under the Policy by the State Government during the respective financial year.

Institutional Framework

The Department is committed to institute the requisite mechanisms and facilitate a conducive environment for the implementation of the Policy. Institutional arrangements have been put in place to provide facilitation support for review and approval of the applications submitted under the Policy.

In this regard, the following committees have been constituted. If required, additional sub-committees may be constituted to evaluate specific incentives and offerings or provide their decisions in special cases. These Committees shall take a decision in accordance

with the current Policy and the decision thus taken shall be final and binding on all concerned.

1. Executive Committee

Executive Committee is constituted to review and approve the applications where the incentive amount being availed is more than INR 2 Crore under the Policy.

i. Members

The Executive Committee is headed by the Additional Chief Secretary / Principal Secretary / Secretary to Government, Department of Electronics, Information Technology, Biotechnology and Science & Technology, Government of Karnataka comprising of the following members:

S. No	Designation	Role
	The Additional Chief Secretary / Principal Secretary / Secretary to Government, Department of Electronics, Information Technology, Biotechnology, Government of Karnataka	Chairperson
	Managing Director, KITS, Department of Electronics, Information Technology, Biotechnology and Science and Technology	Member Secretary
	Representative from KITS	Member
	Secretary to Government, Labour Department, Government of Karnataka	Member
	Commissioner for Industrial Development & Director of Industries & Commerce, Government of Karnataka	Member
	Managing Director, Karnataka Power Transmission Corporation Limited (KPTCL), Government of Karnataka	Member
	Managing Director, Bangalore Electricity Supply Company Limited (BESCOM), Government of Karnataka	Member
	Director, Town & Country Planning, Department of Urban Development, Government of Karnataka	Member

S. No	Designation	Role
	Managing Director, Karnataka Renewable Energy Development Limited, Government of Karnataka	Member
	Chief Executive Officer, Karnataka Industrial Area Development Board, Government of Karnataka	Member
In addition to this, an industry expert or representative from line departments may be invited as a committee member on a case-to-case basis.		

ii. Roles & Responsibilities

The Committee shall perform the following functions for the effective implementation of the Policy:

a) The Executive Committee shall accord approval to applications where the incentive amount being availed is **more than INR 2 Crore**, under the Policy

b) The Committee shall review the implementation and address any ambiguity that arises in the Policy, on case-to-case basis. It shall be the authority to interpret the policy measures, incentives, concessions and subsidies detailed in the Policy and its decision shall be final

c) Based on the report and recommendations placed by KITS capturing the assessment of the Review and Monitoring Committee, the Executive Committee shall sanction approval for incentives applications

d) Provide approval/ rejection for the fund's disbursal to the beneficiaries

e) The Executive Committee shall meet as per the requirements during the Policy Period.

2. Review and Monitoring Committee

Review and Monitoring Committee is constituted to monitor the progress of implementation of all the provisions of the Policy regularly. The Committee will review and provide approval to various incentives, concessions, and subsidies applications, from time to time under the Policy.

i. **Members**

The Review and Monitoring Committee, headed by Director, Department of Electronics, IT & Bt and Managing Director, KITS comprises of the following members:

S. No	Designation	Role
1	Managing Director, KITS, Department of Electronics, Information Technology, Biotechnology, Government of Karnataka	Chairperson
2	General Manager (IT), KITS	Member Secretary
3	Representative from IT Industry – NASSCOM	Member
4	Representative from KDEM	Member
5	Representative from International Institute of Information Technology (IIIT) Bangalore	Member
6	Representative from the Centre for E-Governance	Member
*In addition to this, a subject/ industry expert or representative from line departments may be invited as a committee member on a case-to-case basis.		

ii. **Roles & Responsibilities**

The Committee shall perform the following functions for the effective implementation of the Policy:

a) Depending on the number of applications received, the committee shall meet to review the incentives, concessions, and subsidies applications, monitor the progress, as well as any other related issues.

b) The committee shall review the reports submitted by KITS on the applications and shall provide the final decision on sanction of incentives, concessions, and subsidies.

c) The decision of the Review and Monitoring Committee will be deemed final.

3. Karnataka Innovation and Technology Society (KITS)

KITS will be the nodal agency for implementation of the Policy. The primary responsibility of the nodal agency for execution of the Policy include:

a) Receipt of application, examination and appraisal of applications and issuing acknowledgements.

b) Determination of eligibility of applications based on product categories and other eligibility criteria set in these guidelines.

c) Detailed examination and appraisal of applications.

d) Assisting potential Applicants with any queries related to the Policy

e) Making appropriate recommendations to the Committee for approval of applications under the Policy.

f) Examination of claims for disbursement of incentive and making appropriate recommendations to the Committee.

g) Verification of the disbursement claims with the prescribed documents.

h) Issuing Certificates/Sanction Letter to the Applicants on basis of recommendations from the Committee.

i) Disbursal of incentives to the Applicants whose claims are found eligible under the Policy and are approved by the Committee, as per the procedures laid out in this Operational Guidelines

j) Compilation of data regarding progress and performance of the Policy through quarterly review reports and other information/documents.

k) KITS may request for additional information, details, documents from the Applicant as deemed necessary.

l) KITS may opt to engage professionals from industry who are already engaged/ empaneled with the Department, to seek their opinion for validating documents

1.3. Definitions

1) **Applicant:** Applicant shall mean a Data Centre Entity that is seeking benefits under any incentive, or a concession or a subsidy under the Policy

2) **Chartered Accountant (CA):** Accounting professional who are members of the Institute of Chartered Accountants of India (ICAI)

3) **Cloud Services Provider:** A cloud service provider is a third-party firm offering a cloud-based platform, infrastructure, application or storage service. These entities would be hosting their IT Infrastructure in Data Centre / Data Centre Parks to provide the Cloud Computing services to the end users

4) **Data Centre:** Data Centre is a dedicated secure space within a building / centralized location where computing and networking equipment is concentrated for the purpose of collecting, storing, processing, distributing or allowing access to large amounts of data

5) **Data Centre Entity:** All legal entities operating under the Data Centre industry ambit as a Data Centre Developer or Data Centre Operator

6) Data Centre Developer: is an entity who would be responsible to build the facility of data centre.

7) **Data Centre Park:** Data Centre Parks are specialized secure Data Zone, strategically located with the most conducive non-IT and IT infrastructure, and regulatory environment for housing mix of small scale / large scale / clusters of Data Centres to serve the high needs of compute, storage, networking and provision of a wide range of data-related services

8) **Data Centre Park Developer:** Data Centre Park Developer is an entity who would be responsible to build the facility of DC park covering land, park area (Water, sewage, Road, parking, green area, etc.), provision of DC essentials setup / equipment's (i.e., Electricity, Network / Fibre connectivity, Mechanical Electrical and Plumbing equipment's (MEP), etc.

9) **Data Centre Operators:** Data Centre operator is an entity who would be responsible to manage and operate end to end Data Centre operations

10) **Date of Commencement of Commercial Operation:** Date of commencement of commercial operations means the date on which commercial operations of the entity, i.e., the date of the first commercial sale bill/invoice is raised by the Entity

11) **Department:** Department shall mean Department of Electronics, Information Technology, Biotechnology and Science & Technology, Government of Karnataka

12) **District Level Single Window Clearance Committee (DLSWCC):** DLSWCC constituted under Karnataka Industries (Facilitation) Act, 2002 for consideration of application from entrepreneurs intending to establish industries with the investment of up to Rupees Fifteen crore (INR 15 crore) each, set up in the respective districts

13) **Electricity Duty:** A duty levied and paid to the Government of Karnataka on the charges payable on electricity sold to or consumed by any consumer at such rate as may be notified by the Government of Karnataka

14) **Eligible Applicant:** Any New Data Centre entity or Existing Data Centre entity that is eligible to apply under the Policy as per the criteria defined in section 1.4 of this document

15) **Entity:** A Private Limited Company (as per the Companies Act 2013), a Registered Partnership Firm (under the Partnership Act, 1932) or Limited Liability Partnership (under the Limited Liability Partnership Act, 2008)

16) **Existing Data Centre Entity:** Data Centre Entity in Karnataka which has commenced commercial operations before the notification of this Policy (7th May 2022)

17) **Expenditure on Land**: For the computation of Expenditure on Land, the following shall be considered:

    - ***Price of the land*:** Actual procurement cost to be considered if the land is procured from KIADB or any other agencies of Government of Karnataka. In case of land procured from other sources, the price shall be determined based on the Guidance Value of land at the time of procurement
    - ***Extent of Land*:** Land area up to a maximum of 10 acres shall be considered.
    - ***Coverage*:** All taxes, duties, and levies such as Stamp Duty, Registration Charges, Land Conversion Fee etc. shall be excluded

18) **Expenditure on Land for Subsidy**: For the computation of Expenditure on Land for Subsidy, the following shall be considered:

    - ***Land value for computation of Land Subsidy:*** *The Expenditure on Land, as computed above, shall be capped at 10% of Value of Fixed Assets.*
    - ***Extent of Land Subsidy:*** *The total Land Subsidy shall be capped at INR 3 Crore*

19) **Financial Year:** Financial year begins on the 1st of April of a year and ends on 31st March of the following year as notified by the Ministry of Corporate Affairs (MCA), Government of India

20) **Floor Space Index (FSI) / Floor Area Ratio (FAR):** FSI or FAR means the ratio between the area of a covered floor (Built up Area) to the area of that plot (land) on which a building stands

21) **Force Majeure;** Extraordinary events or circumstances beyond human control such as an event described as an act of God (e.g., natural calamity) or events such as a war, strike, public health emergency, riots, crimes (but not including negligence or wrong-doing, predictable / seasonal rain and any other events specifically excluded)

22) **Guidance Value:** Value of land in a particular area, as determined by the Government of Karnataka, published by Department of Stamps & Registration, Government of Karnataka

23) **KITS:** Karnataka Innovation and Technology Society, Department of Electronics, Information Technology, Biotechnology and Science & Technology

24) **New Data Centre Entity:** Data Centre Entity whose commencement of commercial Operation takes place on or after the notification of the Policy (7th May 2022)

25) **Project/Unit:** New Project for setting up of a Data Centre facility which has achieved commencement of commercial operation after 7th May 2022

26) **Reimbursement:** Compensation given by the State/ Public body/ Organization for a defined expense by giving them an amount equal to what was agreed upon

27) **State High Level Clearance Committee (SHLCC):** SHLCC constituted under Karnataka Industries (Facilitation) Act, 2002 for consideration of application from entrepreneurs intending to establish industries with the investment of above Rupees Five Hundred crore (INR 500 crore) each, set up in the State

28) **State Level Single Window Clearance Committee (SLSWCC):** SLSWCC constituted under Karnataka Industries (Facilitation) Act, 2002 for consideration of application from entrepreneurs intending to establish industries with the investment of above Rupees Fifteen crore (INR 15 crore) up to Rupees Five Hundred crore (500) each, set up in the State

29) **Stamp Duty:** Stamp duty is a duty levied on the legal recognition of certain documents

30) **Subsidy:** Subsidy is a sum of money granted by the state or a public body to help an industry or business to keep the price of a commodity or service low

31) **Technical workforce/ employee:** Shall mean employees of the Applicants working in activities related to the Data Centre services

32) **Unit:** A unit means office space or branch office of a legal entity, under the relevant law, engaged or to be engaged in providing any service related to Data Centres, with its commercial operations in Karnataka

33) **Value of Fixed Assets:** Value of Eligible Fixed Assets (VFA) shall mean the total investment made on land, building and plant and machinery such as Computer and Networking equipment, Servers and such other functional assets like Down Flow Unit, Air Cooling Unit and Air Handling Unit, Power Distribution Unit (Medium Voltage Panels, Low Voltage Panels), Environmental Control Unit, utilities like Server Racks, Chillers, Humidifiers, Compressors, DG Sets, Geographic Information System (GIS), Transformers, Uninterruptible Power Supply (UPS), material handling equipment and such other equipment directly related to the data centre operational purposes.

1.4. Eligibility for Availing Incentives and Offerings

An Applicant should meet the following general eligibility criteria for availing Incentives and Offerings under the Policy.

1.4.1. Registration with KITS/Department

i. To avail the incentives, concessions and subsidies provided under the Policy, an entity must be registered with KITS/ Department as a Data Centre Entity

ii. The process for registration with KITS/Department has been detailed in Section 2

1.4.2. Nature of Business

The Entity registered as a Data Centre Entity and applying under the Policy should be engaged in one of the following businesses:

i. Data Centre involving the development, maintenance of a dedicated secure space within a building / centralized location where computing and networking equipment is concentrated for the purpose of collecting, storing, processing, distributing, or allowing access to large amounts of data, as defined in Section 1.3

ii. Data Centre Developer responsible to build the facility of data centre as defined in Section 1.3

iii. Data Centre Park Developer responsible to build the facility of Data Centre Park covering land, park area (Water, sewage, Road, parking, green area, etc.), provision of DC essentials setup / equipment's (i.e., Electricity, Network / Fibre connectivity, Mechanical Electrical and Plumbing equipment's (MEP), etc. as defined in Section 1.3

iv. Data Centre Operator responsible to manage and operate end to end Data Centre operations, as defined in Section 1.3

v. A cloud service provider offering a cloud-based platform, infrastructure, application, or storage service. These entities would be hosting their IT Infrastructure in Data Centre / Data Centre Parks to provide the Cloud Computing services to the end users, as defined in Section 1.3

1.4.3. Location

The entity must have registered office in Karnataka as per the Companies Act, 2013 or the Entity should be registered as per the Karnataka Shops & Commercial Establishment Act, 1961.

1.5. Applicability of Incentives

The applicability of incentives and offerings under the Policy for eligible Data Centre entities is as specified in Chapter 7 of the Karnataka Data Centre Policy 2022.

1.6. Application Procedure

1.6.1. Application Submission Procedure

1. Applicants intending to avail incentives & offerings under the Policy shall register themselves with KITS/Department, as per the process defined in Section 2
2. Upon verification and physical inspection (as applicable) conducted for the submitted application, and post successful confirmation of the genuineness of the facts, a Registration Certificate shall be generated. With this certificate, the Applicant is successfully registered with KITS/Department.
3. Registered applicants who meet the eligibility criteria as mentioned in Section 1.4, and the incentive specific eligibility criteria and conditions as mentioned in Section 3, shall be able to apply to KITS/Department under the Policy.
4. Separate applications are required to be submitted for availing different incentives, concessions, and subsidies for each Unit under the Policy.

5. Applicants are required to make a one-time application processing fee payment for availing benefits under the Policy, as detailed in Section 1.8

6. The general terms and conditions under the Policy and the incentive specific terms and conditions for availing the benefits under various incentives and offerings have been detailed in Section 1.7 and Section 3 respectively.

7. List of required documents along with prescribed application forms, undertaking and Certificates/Sanction Letters for availing various incentives, concessions and subsidies have been detailed in Section 3, Section 4, Section 5 respectively

8. The details of the process along with the required application forms and documents are also available on the website of the Department at www.itbtst.karnataka.gov.in

9. In case the aforementioned portal is not available, applications may be submitted in physical form to:

   Karnataka Innovation and Technology Society (KITS),
   Department of Electronics, IT, Bt, and S&T, Government of Karnataka,
   BMTC - Central Officers Building,
   TTMC 'B' Block, 4th Floor,
   Shanthinagar, KH Road,
   Bengaluru- 560 027.

10. Upon successful submission of an application, a unique application ID shall be issued to the Applicant. All Applicants may refer to their application ID for any future correspondence on the subject.

1.6.2. Application Scrutiny and Approval Procedure

1. Applicants who have successfully registered with KITS/Department, shall be qualified to submit an application online, through Department's website **www.itbtst.karnataka.gov.in**, as per the process detailed in Section 3

2. KITS shall be the nodal agency for conducting the scrutiny of the applications to ascertain the benefits being availed and claims made by the Applicant. KITS shall undertake the necessary physical verification and inspection (as applicable) to assess the application and the documents submitted by the Applicant for availing the incentives and offerings. To ascertain the amount and advise on the claim, an internal audit will be conducted.

3. KITS shall prepare a report on the findings of the verification and inspection exercise and will place the same before the Review and Monitoring Committee for further appraisal.
4. If the incentive amount being availed is more than INR 2 Crore, the Review and Monitoring Committee shall place a report before the Executive Committee for further appraisal.

1.6.3.Sanction Procedure

1. Various incentives, concessions and subsidies will be granted to eligible Data Centre entities from time to time through the Review and Monitoring Committee/Executive Committee under the Policy
2. The Review and Monitoring committee shall review the report, prepared by KITS, and shall either approve or reject the application. If the Application is found to be in compliance with the Policy and its operational guidelines, the Committee will accord its sanction to the incentive and offering, under the Policy
3. The Executive committee shall review the report, prepared by Review and Monitoring Committee, and shall either approve or reject the application. If the Application is found to be in compliance with the Policy and its operational guidelines, the Committee will accord its sanction to the incentive and offering, under the Policy
4. After approval is granted for the application by the Review and Monitoring/Executive Committee, the Applicant shall be provided with the relevant Certificate/Sanction Letter. The Certificate/Sanction Letter shall specify the terms and conditions for disbursal of the incentives, concessions, and subsidies (as applicable).

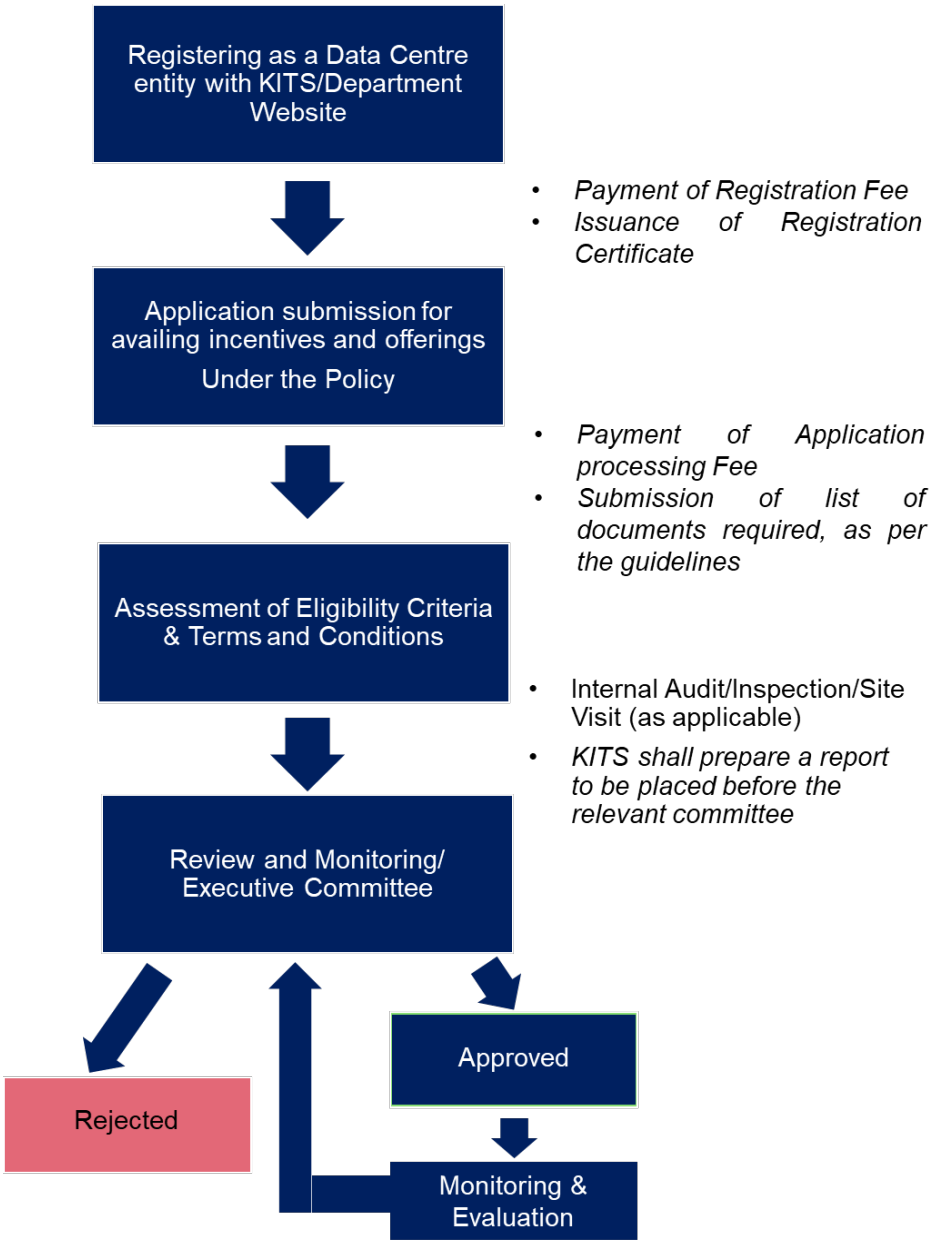


Figure 1: Approval/Sanction Workflow

1.7. General Terms and Conditions

1. The Policy will come into force from 07/05/2022, vide Government Order No. ITBT/79/ ADM/2021, dated 7th May 2022 and will be valid for a period of five years or till a new policy is announced
2. Incentives, concessions, and subsidies under this Policy shall primarily be available for New Data Centre entities and for the existing Data Centre entities in Karnataka, as per the eligibility criteria mentioned in Section 1.4 and Section 3

3. Incentives, concessions, and subsidies are applicable for the proposals submitted after the notification of this Policy.
4. To avail incentives, concessions and subsidies under the Policy, the Applicant must be registered with KITS/Department.
5. Applicants are required to make a one-time application processing fee payment for availing benefits under the Policy, as detailed in Section 1.8
6. Entities can avail incentives, concessions, and subsidies under any one policy of the State. i.e., Entities availing incentives and concessions under Karnataka Data Centre Policy 2022, will not have a choice to avail partly in the Data Centre Policy and partly in any other policy of the State in vogue and vice-versa, unless otherwise specified by the Government
7. **Amendment Certificate:** In case there is change in the location of the registered unit of the applicant /change in the name of the applicant/change in the nature of the entity due to merger/acquisition, the applicant is required to immediately notify KITS/ Department of the change and apply for an amendment certificate as per the process detailed in Section 2.3
8. The applicant should submit the Registration Certificate/Amendment Certificate or a Provisional Registration Certificate from KITS/Department, along with the application, when applying for benefits under the Policy
9. The following incentives are applicable for New/Existing Data Centre units:

Incentives	Eligible New Data Centre Units	Eligible Existing Data Centre Units
Special Provisions in Building Norms	✓	✓
Capital Subsidy		
Land Subsidy		
Exemption of Payment of Stamp Duty and Concessional Registration Charges		
Exemption of Land Conversion Fees		
Power Tariff Concession		
Green Power Tariff Reimbursement		

Incentives	Eligible New Data Centre Units	Eligible Existing Data Centre Units
Special Provisions in Building Norms	✓	✓
Capital Subsidy		
Land Subsidy		
Exemption of Payment of Stamp Duty and Concessional Registration Charges		
Exemption of Electricity Duty		

10. The following incentives are applicable for Data Centre Developers/Operators/Service Providers:

Incentives	Eligible Data Centre Operators/ Service Providers	Eligible Data Centre Developers
Special Provisions in Building Norms		
Capital Subsidy		✓
Land Subsidy		
Exemption of Payment of Stamp Duty and Concessional Registration Charges		
Exemption of Land Conversion Fees		
Power Tariff Concession		
Green Power Tariff Reimbursement		
Exemption of Electricity Duty		

11. Unless specified otherwise, all the documents must be submitted by the applicant
12. Kindly note that all self-attestation is required by the authorized signatory of the applicant

13. The following provisions will be enabled by the concerned departments for the eligible Data Centre units:
    - Exemption of Data Centre entities from the applicability of Karnataka Industrial Employment (Standing Orders) Rules, 1946 as provided in Section 3.3 of the Policy
    - Applicability of the Industrial Disputes Act 1947 for treating Data Centre entities as public utility service as provided in Section 4.1 of the Policy
    - Special Provisions in Building Norms as provided in Section 4.2 of the Policy
    - Exemption of Stamp Duty and Concessional Registration Charges as provided in Section 4.6 of the Policy
    - Exemption of Land Conversion Fees as provided in Section 4.7 of the Policy
    - Power Tariff Concession as provided in Section 4.8 of the Policy
    - Green Power Tariff reimbursement as provided in Section 4.9 of the Policy
    - Exemption of Electricity Duty as provided in Section 4.10 of the Policy
14. Any other related Government Orders/Notifications issued from time to time by Revenue/Energy/ Labour/Urban Development/Commerce & Industries Department, Government of Karnataka are applicable to this Policy.
15. All clarifications relating to interpretation of any term or any provision under this Policy will be communicated to the Department for resolution. The decision of the State Government shall be final and binding for all.
16. Any amendment or changes in the prevailing definitions of Govt. of India schemes and policies will be applicable to the Policy.
17. Step wise guidelines on submitting the application for the incentives are also available on www.itbtst.karnataka.gov.in

1.8. Processing Fees

1. Registration Fee with KITS/Department

To avail incentives, concessions and subsidies under the Policy, the applicant must be registered with KITS/Department. Applicants are required to submit registration application as per the process detailed in Section 2.1.

Upon successful verification of the submitted application and the assessment of all the facts and information, Applicants will be required to make a one-time registration processing fees payment as per the table below:

Fee Structure for Registration/Provisional Registration Certificate with KITS/Department (*Note: This fee is non- refundable)*	
Details	**Registration Fee**
Data Centre Operators/ Developers/ Service Providers	**Rs. 10,000/- + (18% GST)**

2. Application Processing Fee for Availing Benefits under the Policy

To avail incentives, concessions and subsidies under the Policy, applicants are required to make a one-time application processing fee payment, as per the table below:

One Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	
Note: This fee is non- refundable	
Incentives & Offerings	**Application Processing Fee**
1. Special Provisions in Building Norms 2. Capital Subsidy 3. Land Subsidy 4. Exemption of Payment of Stamp Duty & Concessional Registration Charges 5. Exemption of Land Conversion Fees 6. Power Tariff Concession 7. Green Power Tariff Reimbursement 8. Exemption from Electricity Duty	**Rs. 10,000/- + (18% GST)**

2. Registration under KITS/Department

2.1. Registration Certificate (Applicants registering for the first time)

2.1.1.Process

1. Data Centre entities who are registered with KITS/Department shall only be eligible for availing incentives and offerings under the Policy
2. Applicants who are already registered with KITS/Department as IT/ITeS entities, are required to re-register themselves as Data Centre Entities, by making the payment of one-time registration fee
3. Applicants registering for the first time shall sign up on the website by submitting all the required information
4. Upon successfully signing up on the website, the Applicant shall receive an activation link enabling them to activate their account. Applicants can then submit their application for registration in the prescribed format provided in Section 4.1., along with the documents mentioned in Section 2.1.2
5. The registration form shall be accompanied by an undertaking to be submitted by the Applicant, as per the prescribed format provided in Section 5.1
6. KITS shall undertake physical verification/inspection of the Applicant's operations (as applicable) and assess the submitted documents to ensure the veracity and credibility of the Applicant
7. Upon successful verification of the submitted application and confirmation of all the facts and information, a digital link shall be sent to the Applicant for making a one-time registration processing fees payment as detailed in Section 1.8. In case the applicant has already made the payment while obtaining the Provisional Registration Certificate from KITS/Department, the Applicant will be exempted from the payment of this one-time registration fee
8. After successful payment of the application, a digital Registration Certificate shall be generated and shall be sent on the registered email id of the Applicant. With this Registration Certificate, the Applicant is successfully registered with KITS/Department
9. Once the applicant is successfully registered, online modules/functionalities for availing the benefits of incentive, concessions and subsidies under the Policy shall be enabled for the Applicant's account.

10. Applicants with multiple units need to register each unit separately with KITS/Department
11. Step wise guidelines on the process of Registration with KITS/Department are also available on Department's website, https://itbtst.karnataka.gov.in/

2.1.2.List of Documents

Eligible applicants shall submit their online application for registration with KITS/ Department along with the following documents as mentioned below:

1. Dully filled Application in the prescribed format in Section 4.1
2. Undertaking to be submitted by the Applicant in the prescribed format in Section 5.1
3. Submit financial details

   Existing Data Centre Entities

   i. Audited financial statements for the last one year of operations from the date of submission of the application

   ii. Annual reports for the last one year from the date of submission of the application

   New Data Centre Entities

   i. Self – attested detailed project reports on the business that includes financial projections for the next three years

4. Copy of Certificate of Incorporation and Supporting Document

   i. If the Applicant is a Public/Private Company (under The Indian Companies Act, 1956/2013 and subsequent amendments)–

      - Copy of Certificate of Incorporation
      - Copy of Memorandum of Association and Articles of Association

   ii. If the Applicant is a Partnership Firm or a Limited Liability Partnership (registered Partnership Firm under The Indian Partnership Act 1932 or Limited Liability Partnership Act 2008) –

      - Copy of Registration Certificate
      - Copy of Partnership Deed

   iii. If the Applicant is a Proprietorship Firm–

      - Copy of Registration Certificate under applicable Shops and Establishment Act

5. Self-attested Copy of Rental Agreement/Lease deed agreement/Khata (In case the Applicant has more than one Unit, submit document for each, as applicable)
6. Passport sized photograph of the authorized signatory of the applicant
7. Self-attested copy of GST Registration Certificate
8. Self-attested copy of PAN Card
9. Self-attested copies of the Detailed Project report and first sale invoice of services provided to support the nature of Data Centre activities undertaken
10. Chartered Accountant (CA) Certificate (With membership no.) showing shareholding pattern (indicating number of shares and investment)
11. Applicant with a Provisional Registration Certificate
    i. Self-attested copy of the Provisional Registration Certificate
    ii. Self-attested copy of fee receipt paid at the time of obtaining provisional Registration Certificate

2.2. Provisional Registration Certificate (Applicants availing Special Provisions in Building Norms, Stamp Duty Exemption, Concessional Registration Charges, and Land Conversion Fee)

2.2.1. Process

1. Applicants who are not registered with KITS/Department and intend to avail Special Provisions in Building Norms, Stamp Duty Exemption, Concessional Registration Charges and Land Conversion Fee under the Policy are required to obtain a Provisional Registration Certificate
2. Applicants registering for the first time shall sign up on the website by submitting all the required information like Sector type, Mail id, Entity name, Mobile number etc.
3. Upon successfully signing up on the website, the applicant shall receive an activation link enabling them to activate their account for submission of the online provisional registration applications with the required set of documents
4. The applicant shall submit an online application in the prescribed format provided in Section 4.1. along with the required documents provided in Section 2.2.2
5. The application form shall be accompanied by an undertaking to be submitted by the applicants, as per the prescribed format provided in Section 5.1.

6. KITS shall assess the submitted documents to ensure the veracity and credibility of the applicant and its supporting documents and undertake physical verification is required.
7. Upon successful verification of the submitted application and the confirmation of the all the facts and information, a digital link shall be sent to the applicant for making the one-time payment of the processing fees for the Provisional Registration Certificate as detailed in section 1.8
8. After successful payment of the application, a digital Provisional Registration Certificate shall be generated and shall be sent on the registered email id of the Applicant.
9. Post generation of provisional registration certificate the online modules/functionalities for availing the benefits of Special Provisions in Building Norms, Stamp Duty Exemption, Concessional Registration Charges and Land Conversion Fee under the Policy shall be enabled in the Applicant's account.
10. Post completion of the project/unit, the Applicant is required to register itself with KITS/ Department as per the process detailed in Section 2.1.1.

2.2.2.List of Documents

1. Dully filled Application in the prescribed format in Section 4.1
2. Copy of Certificate of Incorporation and Supporting Document
    i. If the Applicant is a Public/Private Company (under The Indian Companies Act, 1956/2013 and subsequent amendments)–
        - Copy of Certificate of Incorporation
        - Copy of Memorandum of Association and Articles of Association

    ii. If the Applicant is a Partnership Firm or a Limited Liability Partnership (registered Partnership Firm under The Indian Partnership Act 1932 or Limited Liability Partnership Act 2008) –
        - Copy of Registration Certificate
        - Copy of Partnership Deed

    iii. If the Applicant is a Proprietorship Firm–
        - Copy of Registration Certificate under applicable Shops and Establishment Act
3. Undertaking to be submitted by the Applicant in the prescribed format in Section 5.1

4. Self-attested copies of the Detailed Project Report (DPR) to support the nature of Data Centre activities undertaken
5. Self-attested copy of Sale-cum-lease Agreement/Lease deed agreement/Khata or Sale deed agreement/KAIDB/Or KSSIDC land allotment letter etc. of the applicant
6. Passport sized photograph of the authorized signatory of the applicant

2.3.Amendment Certificate (Applicants already registered with KITS/Department)

2.3.1.Process

1. The Applicant should already be registered with KITS/Department as a Data Centre entity
2. The Applicant should have undergone any of the following to apply for an Amendment Certificate:
    i. Change of the Registered Name of a Registered Unit
    ii. Change in the Address of a Registered Unit
    iii. Change in the nature of Organization of the Applicant due to Merger/Acquisition
    iv. Establishment of Additional Units
3. Applicants intending to apply for an Amendment Certificate shall apply online through the KITS/Department https://itbtst.karnataka.gov.in
4. Registered Applicants shall login on the website with the credentials they have been provided at the time of their registration with KITS/Department
5. The applicant shall submit the documents as per the list provided in Section 2.3.2
6. KITS shall undertake physical or virtual inspection (as applicable) and assess the submitted documents to ensure the veracity and credibility of the Applicant and the application
7. Upon successful verification, digital Amendment Certificate will be issued to the Applicants and sent to their registered email id.
8. Step wise guidelines on the process of issuing amendment certificate with KITS/ Department are also available on the Department's website https://itbtst.karnataka.gov.in

2.3.2.List of Documents

As applicable, Applicant shall submit the following documents for getting amendment certificate as below:

1. The Applicant shall submit the original Registration Certificate issued by KITS/ Department. In case the Applicant is in possession of the hard copy of the Registration Certificate issued by KITS/Department earlier, the same needs to be returned.
2. In case the applicant has lost the Original Registration Certificate issued by KITS/ Department earlier, the Applicant should submit an Affidavit for the same.
3. As applicable shall submit the following:

   i. Change of the Registered Name

   - The Applicant shall submit the copy of Certificate of Incorporation with the changed name

   ii. Change of the Address of a Registered Unit

   - The Applicant shall submit the Self-attested copy of Rental Agreement/Lease Deed/Khata

   iii. Merger/Acquisition

   - The Applicant shall submit sufficient proof regarding the merger /acquisition and submit copy of Business Transfer/Board Resolution/Court order

   iv. Establishment of Additional Unit/s

   - The Applicant shall submit the Self-attested copy of Rental Agreement/Lease Deed/Khata for the Additional Unit/s
   - The Applicant shall submit copy of the Detailed Project Report (DPR) for the Unit/s

3. Operational Guidelines for Availing Incentives and Offerings

3.1.Special Provisions in Building Norms

3.1.1.Terms and Conditions

1. Government of Karnataka provides relaxation/modification for the following Building Norms (zoning regulations and building byelaws) across the State for eligible Data Centre entities registered with KITS/Department that are set up as an independent activity, as mentioned in the table below:

Category	Relaxation/ Modification in	Provisions
	Zoning Regulations	— **Ground coverage**: Upto 60% ground coverage shall be allowed to the data Centre parks/units. — **Floor Area Ratio**: Data Centre entities shall be allowed for 3.0 + 1.0 (Purchasable) FAR. Basement parking, storage and space used for DG sets installation will not be considered as part of FAR. — **Car Parking**: Car Parking for data Centre Entities shall be considered as 1 Parking Space per 100 Square meters of designated office area as a threshold requirement in the approved Plan (or) 1 Parking Space per 300 square meters of total built-up area at the option of the developer.

Category	Relaxation/ Modification in	Provisions
Eligible Data Centre Entities (New and Existing)	Building Bye-Laws	— **Floor to ceiling height (One floor):** There will be no restriction on floor to ceiling height subject to there being no mezzanine floor, and compliance with overall height regulations and suitable structural and fire safety regulations. — **Installation of chillers on the rooftop:** shall be permitted without inclusion in FAR, subject to structural safety norms. — **Boundary Wall:** Exemption on the height norms for the construction of boundary walls up to 3.6 m with 600 mm fencing (Y or spherical) on top of the boundary wall. — **Opening in Building:** The data centre building shall be allowed to install minimum number of windows (5% of building facade), subject to compliance with building and fire safety regulations. — **Multi-level DG stacking:** Structure up to G + 5 shall be permissible for Installation of DG sets including multi-level DG stacking, subject to NOC from Fire Safety Department and shall not be considered as part of FAR. — **Data Centre/Parks in Any Land Zone:** Setting up of data Centres would be permitted in any land zone namely commercial, industrial, and institutional to avoid incurring additional costs for

2. This provision shall be in accordance with the enabling notification issued by the Urban Development Department, Government of Karnataka and shall be effective after the issue of the same.

3.1.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.2, as per the application process detailed in Section 3.1.3.

The Applicant shall submit the application along with the following set of documents:

1. Application form in the prescribed format provided in Section 4.2
2. Copy of the Registration Certificate/ Provisional Registration Certificate issued by KITS/ Department
3. An undertaking by the Applicant as per the prescribed format provided in Section 5.4
4. Land Documents
    i. Absolute Sale Deed and Records of Rights, Tenancy & Crops (RTC) in case of purchase (or)
    ii. Sale cum lease deed in case of allotment from Government organizations
    iii. Allotment Letter or Possession Certificate for KIADB in case of land leased from KIADB
    iv. Copy of KHATA Certificate
5. Copy of approved building plan and building construction license
6. Copy of Layout map showing the land utilization, signed by the concerned Revenue Officer
7. Self-attested copy of the Approval Letter/Government order from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC) regarding the Approval/clearance accorded to the Unit

3.1.3.Application Process

1. Applicants should obtain the Registration Certificate/ Provisional Registration Certificate issued by KITS/Department as detailed in Section 2

2. Based on the verification of the project/unit approval accorded by the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC), KITS shall issue a Registration Certificate/ Provisional Registration Certificate to the Applicant
3. Upon successful registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.2 along with the list of documents as mentioned in Section 3.1.2
4. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application
5. KITS shall prepare a report to capture its findings and shall place the same before the Review and Monitoring Committee for their appraisal
6. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will sanction the final approval. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the Committee shall reject the application
7. Post satisfaction of the genuineness of the facts and approval, a Certificate (in the format provided in Section 5.3), will be issued to the Director, Town Planning by KITS. A copy of the same shall also be sent to the Applicant
8. Upon successful approval of the application, the applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.4) on their letter head.
9. If the Applicant avails this benefit with Provisional Registration Certificate, then on completion of the Project/ Unit, the Applicant is required to register itself with KITS/ Department as per the process detailed in Section 2.1

3.2.Capital Subsidy

3.2.1.Terms and Conditions

1. Government of Karnataka provides Capital subsidy for Data Centre entities registered with KITS/Department as per the table below:

Category	Incentive
Eligible Data Centre Entities (New)	— One-time 7% Capital subsidy on Value of Fixed Assets (VFA) excluding land and building, shall be provided to Data Centre entities outside Bengaluru Urban district — This shall be disbursed within 5 years with an annual ceiling of INR 2 Crore — Cap on the maximum amount of Capital subsidy shall be limited to 7% of the VFA (excluding land and building) or INR 10 Crore, whichever is less

2. Applicant may place the application for Capital Subsidy within 12 months from the date of commencement of commercial operations, for the total eligible VFA (excluding Land & Building) of the Unit for the annual disbursal upto INR 2 Crore.
3. In case an Applicant files for subsidy after 12 months from Date of Commencement of Commercial Operations, the Applicant must provide reasonable justification for the same which will be evaluated by the Executive Committee
4. All invoices, lease/sale deeds and other relevant documentation and certification shall be in the name of the Applicant
5. If the new items under consideration, which were not included in the approved eligible VFA, are within the same eligible VFA limit for similar items and are intended for the same purpose as was proposed for the services, the same may be approved by Executive Committee after due diligence. Any additional data / information /documents/certificates required by KITS for this purpose shall be arranged by the Applicant
6. Any change in the share holding pattern of an Applicant leading to a Successor-in-Interest shall be intimated by KITS for consideration and recommendation of the Executive Committee. Based on the Committee's recommendation, KITS shall communicate approval to such successor -in-interest to submit claims for disbursal of incentive
7. In case of a Successor-in-Interest, all incremental capital expenditure undertaken by the Applicant to whom approval was accorded under the Policy, would be considered for determining Eligible capital expenditure, subject to recommendation and compliance with any other condition stipulated by the Executive Committee, as may be deemed appropriate. The earlier capital expenditure and eligible capital expenditure for the successor -in-interest shall be the same as determined for the Applicant to whom approval was accorded under the Policy

8. The approved list of capital items shall be provided in the Sanction Letter issued by KITS to the Applicant

3.2.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.3, as per the application process detailed in Section 3.2.3.

The Applicant shall submit the application along with the following set of documents:

1. Application form in the prescribed format provided in Section 4.3
2. Copy of the Registration Certificate issued by KITS/Department
3. An undertaking by the Applicant as per the prescribed format provided in Section 5.6
4. Copy of the company registration/incorporation document of the entity to be considered for the claim
5. Self-attested copy of the Approval Letter/Government order from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC) regarding the Approval/clearance accorded to the unit
6. Copies of all invoices/POs relevant to the investment in the name of Applicant along with corresponding GSTR 2A forms
7. Bank Statements and any other supporting documents for the investment made in the entity such as letter from Financial Institution or Scheduled Bank
8. Self-attested Copy of the term loan sanctioned letter from financial institution, if any
9. Original C.A. certificate for self-financed cases
10. Self-attested copy of Power service letter

3.2.3.Application Process

1. Applicant should be successfully registered with KITS/Department as per the process defined in Section 2
2. Upon successful registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.3, along with the list of documents as mentioned in Section 3.2.2

3. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application
4. KITS shall prepare a report to capture its findings and shall place the same before the Review and Monitoring Committee for their appraisal.
5. The Review and Monitoring committee shall review the report and submit their recommendations to the Executive Committee for final appraisal.
6. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will sanction the final approval. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
7. Post satisfaction of the genuineness of the facts and approval, a Capital Subsidy Sanction Letter (in the format provided in Section 5.5), will be issued to the Applicant by KITS.
8. Upon successful approval of the application, the applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.6) on a stamp paper of INR 200
9. For the subsequent annual disbursals, the applicant has to place new applications with the relevant documentation annually as provided in Section 3.2.2. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application before each annual disbursal

3.3. Land Subsidy

3.3.1. Terms and Conditions

1. Government of Karnataka provides subsidy on Land for Data Centre entities registered with KITS/Department as per the table below:

Category	Incentive
Eligible Data Centre Entities (New)	— 10% Land subsidy shall be provided to data centre entities on purchase/lease of land outside Bengaluru Urban district. — Land subsidy will be provided for land area up to and not exceeding 10 acres and on actual procurement cost if procured from KIADB or any other agencies of Government of Karnataka. The subsidy for land procured from other sources will be as per the guidance value of land at the time of procurement. — Cap on the maximum amount of land subsidy shall be limited to 10% of the total land cost or INR 3 Crore, whichever is less. — Land subsidy will be applicable only to set up the data centre units. In case solar power plant or other such projects being established along with data centre units, no land subsidy shall be applicable on the proportionate land utilised for the solar power plant.

2. Applicant may place a one-time application for Land Subsidy within 12 months from the date of commencement of commercial operations, for the total eligible expenditure on Land
3. In case an Applicant files for subsidy after 12 months from Date of Commencement of Commercial Operations, the Applicant must provide reasonable justification for the same which will be evaluated by the Executive Committee
4. For the computation of land cost (Expenditure on Land), the following shall be considered:
    - **Price of the land:** Actual procurement cost to be considered if the land is procured from KIADB or any other agencies of Government of Karnataka. In case of land procured from other sources, the price shall be determined based on the Guidance Value of land at the time of procurement.
    - **Extent of Land:** Land area up to a maximum of 10 acres shall be considered.
    - **Coverage:** All taxes, duties, and levies such as Stamp Duty, Registration Charges, Land Conversion Fee etc. shall be excluded.
5. For the computation of land subsidy (Expenditure on Land for Subsidy), the following shall be considered:
    - **Land value for computation of Land Subsidy**: The Expenditure on Land, as computed above, shall be capped at 10% of Value of Fixed Assets.
    - **Extent of Land Subsidy**: The total Land Subsidy shall be capped at INR 3 Crore.

6. All invoices, lease/sale deeds and other relevant documentation and certification shall be in the name of the Applicant.

3.3.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.4, as per the application process detailed in Section 3.3.3.

The Applicant shall submit the application along with the following set of documents-

1. Application form in the prescribed format provided in Section 4.4
2. Copy of the Registration Certificate issued by KITS/Department
3. An undertaking by the Applicant as per the prescribed format provided in Section 5.8
4. Self-attested copy of the Approval Letter/Government order from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC) regarding the Approval/clearance accorded to the unit
5. Land Documents
    i. Absolute Sale Deed and Records of Rights, Tenancy & Crops (RTC) in case of purchase (or)
    ii. Sale cum lease deed in case of allotment from Government organizations
    iii. Allotment Letter or Possession Certificate for KIADB in case of land leased from KIADB
    iv. Copy of KHATA Certificate
6. Certificate from the CA / Company Secretary containing (applicable if the land is procured other than from the Government agencies)
    i. Non-Encumbrance Certificate for last 3 years
    ii. Land is in the name of Applicant or Applicant has right to use land
    iii. No litigations on aforesaid land
    iv. Land is meant for industrial use
    v. All clearances required (Statutory clearances, environmental clearances etc.) have been obtained for undertaking Data Centre activity at the proposed location
    vi. UDIN of the CA / Company Secretary

7. CA Certified copy of Statement on Expenditure Incurred under Capital Investment on Land (Annexure 6.1) with UDIN Number
8. Copy of Bank Statement for the last one year

3.3.3.Application Process

1. Applicant should be successfully registered with KITS/Department as per the process defined in Section 2
2. Upon successful registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.4, along with the list of documents as listed in Section 3.3.2
3. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application
4. KITS shall prepare a report to capture its findings and advice and shall place the same before the Review and Monitoring Committee for their appraisal.
5. The Review and Monitoring committee shall review the report and submit their recommendations to the Executive Committee for final appraisal
6. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will sanction the final approval. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
7. Post satisfaction of the genuineness of the facts and approval, a Land Subsidy Sanction Letter (in the format provided in Section 5.7), will be issued to the Applicant by KITS.
8. Upon successful approval of the application, the applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.8) on a stamp paper of INR 200

3.4.Exemption of Payment of Stamp Duty and Concessional Registration Charges

3.4.1.Terms and Conditions

1. Government of Karnataka provides exemption of Stamp Duty and Concessional Registration Charges for applicants registered with KITS/Department that are paid in respect of the following:

i. Loan agreements, credit deeds, mortgage and hypothecation deeds executed for availing loans from State Financial Corporation, National Level Financial Institutions, Commercial Banks, Regional Rural Banks, Co-operative Banks, Khadi and Village Industries Board (KVIB/Khadi and Village Industries Commission (KVIC), Karnataka State SC/ST Development Corporation, Karnataka State Minority Development Corporation and other institutions which may be notified by the Government from time to time for the initial period of five years only

ii. Lease deeds, lease-cum-sale, sub-lease and absolute sale deeds executed by industrial enterprises in respect of industrial plots, sheds, industrial tenements by Karnataka Industrial Area Development Board (KIADB), Karnataka State Small Scale Industries, KEONICS, Industrial Co-operatives, approved private industrial estates/ parks, food parks, SPV formed by GoK / GoI and other approved industrial parks

Category	Incentive
Eligible Data Centre Entities (New)	100% exemption of stamp duty, upto 10 acres, for data centre entities outside Bengaluru Urban district.

2. Registered Data Centre entities will be eligible for a concessional rate on registration charges for all loan documents, lease deeds and sale deeds as mentioned below:

Category	Incentive
Eligible Data Centre Entities (New)	INR 1/- per INR 1,000/- on registration charges for all loan documents, lease deeds and sale deeds for data centres outside Bengaluru Urban district.

Note:

i. The exemption of stamp duty and concessional registration charges are also applicable to lands purchased under Section 109 of the KLR Act, 1961 and also for direct purchase of industrially converted lands for the projects approved by SLSWCC /

DLSWCC. This incentive will also be applicable for the land transferred by KIADB to landowners as compensation for the acquired land.

ii. The exemption of stamp duty and concessional registration charges are also available for registration of final sale deed in respect of lands, sheds, plots, industrial tenements after the expiry of the lease period at the rate as specified in the Industrial Policy which was in vogue at the time of execution of lease-cum-sale deed.

3. Applicant should obtain the Provisional Registration Certificate issued by KITS/Department as stated in Section 2.2.
4. This exemption shall be in accordance with the enabling notification issued by the concerned Stamps & Registration Department, Government of Karnataka and shall be effective after the issue of the same.
5. The Applicant shall apply at the time of project development, before the Date of commencement of Commercial Operations at the Unit, after obtaining the required approval for the project/unit from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC)
6. If the Unit is not commercially operational within 3 years of availing the incentive, the State Government/Financial Institution concerned shall have the right to claim refund of the amount equivalent of the exemption amount along with such interest as the State Govt./ Financial Institution concerned may charge during the period

3.4.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.5, as per the application process detailed in Section 3.4.3.

The Applicant shall submit the application along with the following set of documents-

i. Application form in the prescribed format provided in Section 4.5
ii. Signed Undertaking in the prescribed format provided in Section 5.10
iii. Copy of the Provisional Registration Certificate issued by KITS/Department
iv. Copy of the Detailed Project Report (DPR) duly signed by the promoter (detailing project cost and means of finance details, buildings, and civil works estimations etc.)
v. CA Certification on the total project cost

vi. Self-attested copy of the Approval Letter/Government order from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC) regarding the Approval/clearance accorded to the project/unit

vii. As applicable, shall submit the following:

- **Stamp Duty Exemption of Loan**
  a. Self- Attested copy of loan sanction letter issued by the concerned financing Bank/Authority
- **Stamp Duty Exemption of Land (KIADB/KSSIDC/KEONICS)**
  a. Self- Attested Copy of shed/land allotment order
  b. Self- Attested Copy of Possession Certificate
  c. Self- Attested Copy of the unregistered lease deed/lease-cum-sale deed
- **Stamp Duty Exemption of Absolute sale deed (KIADB/KSSIDC/KEONICS)**
  a. Self-attested copy of lease cum sale deed
  b. Self-attested copy of unregistered absolute sale deed

3.4.3.Application Process

1. Applicant should be provisionally registered with KITS/Department as per the process defined in Section 2
2. Based on the verification of the project approval accorded by the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC), KITS shall issue a **Provisional Registration Certificate** to the Applicant.
3. After successful provisional registration, the Applicant is required to submit the application form for availing the Stamp Duty Exemption and Concessional Registration Charges, in the prescribed format provided in Section 4.5, along with the list of documents as listed in Section 3.4.2
4. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct an internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application and advise on the issuance of the Stamp Duty Exemption and Concessional Registration Charges Certificate
5. KITS shall prepare a report to capture its findings and shall place the same before the Review and Monitoring Committee for their appraisal

6. The Review and Monitoring committee shall review the report. If the application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will sanction the final approval. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
7. If the Application has been accorded approval by the Committee, Stamp Duty Exemption and Concessional Registration Charges Certificate (in the format provided in Section 5.9) will be issued to the Sub-Registrar of the concerned taluk. A copy of the Certificate shall also be sent to the applicant.
8. Upon successful approval of the application, the applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.10) on their letter head
9. After the completion of the project, the Applicant should successfully register themselves with KITS/Department as detail in Section 2

3.5. Exemption of Land Conversion Fees

3.5.1. Terms and Conditions

1. Government of Karnataka provides exemption of Land Conversion Fees for Data Centre entities registered with KITS/Department as per the table below:

Category	Incentive
Eligible Data Centre Entities (New)	— 100% exemption of Land Conversion Fees for converting the land from agriculture use to industrial use — This shall be provided to Data Centre Entities outside Bengaluru Urban district.

2. Applicant should obtain the Provisional Registration Certificate issued by KITS/Department as stated in Section 2.2
3. This exemption shall be in accordance with the enabling notification issued by the Revenue Department, Government of Karnataka and shall be effective after the issue of the same
4. The Applicant shall apply at the time of project development, before the Date of commencement of Commercial Operations at the Unit, after obtaining the required approval

for the project from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC)

5. If the Unit is not commercially operational within 3 years of availing the incentive, the State Government/Financial Institution concerned shall have the right to claim refund of the amount equivalent of the exemption amount along with such interest as the State Govt./ Financial Institution concerned may charge during the period

3.5.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.6 as per the application process detailed in Section 3.5.3.

The Applicant shall submit the application along with the following set of documents:

1. Application form in the prescribed format provided in Section 4.6
2. Copy of the Provisional Registration Certificate issued by KITS/Department
3. Signed Undertaking in the prescribed format provided in Section 5.12
4. Copy of approved building plan and building construction license
5. Copy of land documents/records
    i. Absolute Sale Deed and Records of Rights, Tenancy & Crops (RTC) in case of purchase (or)
    ii. Sale cum lease deed in case of allotment from Government organizations
    iii. Allotment Letter or Possession Certificate for KIADB in case of land leased from KIADB
    iv. Copy of KHATA Certificate
6. Copy of Detailed Project Report, duly signed by the promoter
7. Copy of ESCOMs power sanction and service letter
8. Details of land utilization in respect of individual Units, signed by Revenue officer
9. Certificate from the CA / Company Secretary containing (applicable if the land is procured other than from the Government agencies)
    i. Non-Encumbrance Certificate for last 3 years
    ii. Land is in the name of Applicant or Applicant has right to use land

iii. No litigations on aforesaid land

iv. Land is meant for industrial use

v. All clearances required (Statutory clearances, environmental clearances etc.) have been obtained for undertaking Data Centre activity at the proposed location

vi. UDIN of the CA / Company Secretary

10. Self-attested copy of the Approval Letter/Government order from the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC) regarding the Approval/clearance accorded to the project/unit

3.5.3.Application Process

1. Applicant should be provisionally registered with KITS/Department as per the process defined in Section 2
2. Based on the verification of the project approval accorded by the State Level Committees (SLSWCC/SHLCC) or District Level Committees (DLSWCC), KITS shall issue a Provisional Registration Certificate to the Applicant
3. Upon successful provisional registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.6, along with the list of documents as listed in Section 3.5.2
4. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application
5. KITS shall prepare a report to capture its findings and shall place the same before the Review and Monitoring Committee for their appraisal
6. The Review and Monitoring committee shall review the report. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will sanction the final approval. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
7. Post satisfaction of the genuineness of the facts and approval, an Exemption of Land Conversion Fee Certificate (in the format provided in Section 5.11), will be issued to the Deputy Commissioner, Concerned District by KITS. A copy of the Certificate shall also be sent to the applicant
8. Upon successful approval of the application, the Applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.12) on their letter head

9. After the completion of the project, the Applicant should successfully register themselves with KITS/Department as detail in Section 2

3.6. Power Tariff Concession (PTC)

3.6.1. Terms and Conditions

1. Government of Karnataka provides concession on Power Tariff for Data Centre entities registered with KITS/Department as per the table below:

Category	Incentive
Eligible Data Centre Entities (New and Existing)	— Eligibility of Industrial Power Tariff instead of Commercial Power Tariff for new and existing Data Centre entities in the State, as applicable for IT/ITES entities. — This will be eligible for Data Centre Entities who have a minimum of 30% green energy component in total power consumption

2. Applicant can avail Power Tariff Concession during the Policy period from the date of issuance of Power Tariff Concession Certificate by KITS/Department
3. This concession shall be in accordance with the enabling notification/order from the Karnataka Electricity Regulatory Commission (KERC), Government of Karnataka and shall be effective after the issue of the same
4. A dedicated electricity meter in the name of the Applicant is required to be installed with the applicable Government electricity supply agency exclusively for this new or existing capacity
5. In case the Applicant is availing Power Tariff Concession for the RR Number that is not under its name but in the name of developers/owners of the building/premise leased/rented by the Applicant, then the Applicant should be the sole occupant of the building
6. The Applicant or any of their associated subsidiary/affiliates should not be under litigation/ Court Cases with respect to ESCOMs or the Department
7. Applicants whose application have been approved for PTC must immediately inform KITS/ Department and concerned ESCOM in case of applicability of any of the following:
    i. Change in the address of the Unit for which the PTC has been approved
    ii. Closure of the operation at the location for which the PTC has been approved

iii. Change in the registered name of the applicant for which the PTC has been approved

iv. Change in the organizational structure/ ownership/nature of the applicant due to merge/ acquisition

v. Change in the nature of the activity being conducted at the location for which the PTC has been approved

8. Applicants are required to submit an undertaking to KITS/Department stating that they will immediately notify KITS/Department and the concerned ESCOM sub-division in case of applicability of any of the modifications stated in Section 3.6.1. Sl. No7. The PTC accorded shall be discontinued with immediate effect

9. In case of applicability of any of the modifications stated in Section 3.6.1 Sl. No7 or Addition of any new Unit for which the Applicant wants to avail the PTC, the Applicant should submit an Amendment Form as per the process detailed in Section 2.3 and obtain the relevant Amendment Certificate to reapply for the PTC benefits

10. Applicants successfully availing the benefits should comply with a minimum of 30% green energy component in total power consumption.

11. If KITS/ESCOM is satisfied that the benefits have been obtained by misrepresentation of essential fact, furnishing false information after the approval of the incentive, they shall have the right to revoke the incentives enabled

3.6.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.7 as per the application process detailed in Section 3.6.4.

The Applicant shall submit the application along with the following set of documents-

i. Application form in the prescribed format provided in Section 4.7

ii. Copy of the Registration Certificate issued by KITS/Department

iii. An undertaking by the Applicant as per the prescribed format provided in Section 5.15

iv. Self- attested Copy of Rental Agreement/Lease deed agreement/Khata or sale deed agreement

v. Copy of Electricity Supply Company (ESCOM) Service Certificate with R.R. No. in the name of the Applicant as provided in Section 6.2

vi. Self-attested copies of the last 3 months electricity bills since the date of submission of the application with payment receipts for the duration of claiming PTC. The electricity bills should clearly detail out the energy consumption from renewable sources as per the incentive requirement

vii. Copy of ESCOM Single Window Clearance Committee approvals/Govt. order, if any

viii. Self-Declaration by the Applicant for abiding a minimum of 30% Green Energy Component in the Total Power Consumption, per annum basis during the Policy period, as per the prescribed format provided in 5.14

3.6.3.Application Process

1. Applicant should be successfully registered with KITS/Department as per the process defined in Section 2
2. Upon successful registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.7, along with the list of documents as listed in Section 3.6.2
3. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents
4. The internal audit/inspection/site visit (as applicable) shall be conducted by KITS with representation from ESCOM/KREDL., to ascertain the authenticity of the application, as per the Energy Department notification issued
5. The inspection/site visit conducted by KITS shall involve the required examination of applicant's operations, source of energy requirements to meet the eligibility criteria/ milestone and the installed electric systems to verify the owner details mentioned in the submitted bills
6. KITS shall prepare a report to capture its findings and shall place the same before the Review and Monitoring Committee for their appraisal
7. The Review and Monitoring committee shall review the report. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will approve the application. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
8. Post satisfying the genuineness of the facts and approval, a Power Tariff Concession Certificate (in the format provided in Section 5.13), will be issued to the concerned

Associate Executive Engineer (AEE) of the concerned ESCOM by KITS. A copy of the Certificate shall also be sent to the Applicant

9. Upon successful approval of the application, the Applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.15) and a self-declaration on meeting the eligibility criteria (in the format provided in Section 5.14) on their letter head

3.7.Green Power Tariff Re-imbursement

3.7.1.Terms and Conditions

1. Government of Karnataka provides re-imbursement on Green Power Tariff for Data Centre entities registered with KITS/Department as per the table below:

Category	Incentive
Eligible Data Centre Entities (New and Existing)	— Data Centre entities using energy from renewable sources above 50% will be re-imbursed INR 0.50 surcharge per unit for 5 years. — Data Centre entities shall be eligible for green power tariff re-imbursement of upto 5 MW, capped at INR 1.25 Crore. The same shall be disbursed within 5 years with an annual ceiling of INR 25 Lakhs.

2. Applicant may place application for Green Power Tariff Re-imbursement within 12 months from the date of registration with KITS/Department for the total eligible reimbursement with an annual disbursal of upto INR 25 Lakh, for 5 years
3. A dedicated electricity meter in the name of the Applicant is required to be installed with the applicable Government electricity supply agency exclusively for this new or existing capacity
4. In case the Applicant is availing Green Power Tariff Re-imbursement for the RR Number that is not under its name but in the name of developers/owners of the building/premise leased/rented by the applicant, then the Applicant should be the sole occupant of the building
5. The applicant or any of their associated subsidiary/affiliates should not be under litigation/ Court Cases with respect to ESCOMs or the Department

6. Applicants whose application have been approved for Green Power Tariff Re-imbursement must immediately inform KITS/Department and concerned ESCOM in case of applicability of any of the following:
    i. Change in the address of the Unit for which the Green Power Tariff Re-imbursement has been approved
    ii. Closure of the operation at the location for which the Green Power Tariff Re-imbursement has been approved
    iii. Change in the registered name of the applicant for which the Green Power Tariff Re-imbursement has been approved
    iv. Change in the organizational structure/ ownership/nature of the applicant due to merge/ acquisition
    v. Change in the nature of the activity being conducted at the location for which the Green Power Tariff Re-imbursement has been approved
7. The Applicants shall submit the required list of documents to KITS/Department annually to claim the annual re-imbursement amount
8. An inspection/site visit (as applicable) shall be conducted by KITS with representation from ESCOM/KREDL., to ascertain the authenticity of the documents submitted annually
9. If KITS/ESCOM/KREDL. is satisfied that the benefits have been obtained by misrepresentation of essential fact, furnishing false information after the approval of the incentive, they shall have the right to revoke the incentives enabled
10. Applicants are required to submit an undertaking to KITS/Department stating that they will immediately notify KITS/Department in the prescribed format provided in Section 5.18 and the concerned ESCOM sub-division in case of applicability of any of the modifications stated in Section 3.7.1. Sl. No 6. The Green Power Tariff Re-imbursement accorded shall be discontinued with immediate effect
11. In case of applicability of any of the modifications stated in Section 3.7.1 Sl. No6 or Addition of any new Unit for which the Applicant wants to avail the Green Power Tariff Re-imbursement, the Applicant should submit an Amendment Form as per the process detailed in Section 2.3 and obtain the relevant Amendment Certificate to reapply for the Green Power Tariff Re-imbursement
12. Applicants availing this incentive in a particular financial year (“Base Financial Year”), should apply latest by 6 months from the end of the Base Financial Year i.e., 30th September. Applications submitted beyond this time will be rejected

Illustration: An Applicant who wishes to apply for the Green Power Tariff Re-imbursement for the period June 2022-March 2023, the Base Financial Year shall be FY 2022-23. To avail the re-imbursement, the Applicant should submit the application latest by 6 months from the end of the Base Financial Year i.e., on or before 30th September 2023

13. For the subsequent annual disbursals, the applicant has to place new applications with the relevant documentation annually as provided in Section 3.7.2. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application before each annual disbursal

3.7.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.8 as per the application process detailed in Section 3.7.4

The Applicant shall submit the application along with the following set of documents-

i. Application form in the prescribed format provided in Section 4.8
ii. Copy of the Registration Certificate issued by KITS/Department
iii. An undertaking by the Applicant as per the prescribed format provided in Section 5.18
iv. Self- attested Copy of Rental Agreement/Lease deed agreement/Khata or sale deed agreement
v. Copy of Electricity Supply Company (ESCOM) Service Certificate with R.R. No. in the name of the Applicant as provided in Section 6.2
vi. Self-attested copies of the last 3 months electricity bills from the date of submission of the application with payment receipts for the duration of claiming reimbursement. The bills should clearly detail out the energy consumption from renewable sources as per the incentive requirement
vii. Copy of ESCOM Single Window Clearance Committee approvals/Govt. order, if any
viii. Self-Declaration by the Applicant for abiding a minimum of 50% Renewable Energy Component in the Total Consumption per annum during the Policy period, as per the prescribed format provided in 5.17

3.7.3.Application Process

1. Applicant should be successfully registered with KITS/Department as per the process defined in Section 2
2. Upon successful registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.8, along with the list of documents as listed in Section 3.7.2
3. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents
4. The internal audit/inspection/site visit (as applicable) shall be conducted by KITS with representation from ESCOM/KREDL, to ascertain the authenticity of the application
5. The inspection/site visit conducted by KITS shall involve the required examination of applicant's operations, source of energy requirements to meet the eligibility criteria and the installed electric systems to verify the owner details mentioned in the submitted bills
6. KITS shall prepare a report to capture its findings and advice and shall place the same before the Review and Monitoring Committee for their appraisal
7. The Review and Monitoring committee shall review the report. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will approve the application. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
8. Post satisfying the genuineness of the facts and approval, a Green Power Tariff Reimbursement Sanction Letter (in the format provided in Section 5.16), will be issued to the Applicant by KITS.
9. Upon successful approval of the application, the applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.18) and a self-declaration on meeting the eligibility criteria (in the format provided in Section 5.17) on their letter head

3.8.Exemption from Electricity Duty

3.8.1.Terms and Conditions

1. Government of Karnataka provides exemption from Electricity Duty for Data Centre entities registered with KITS/Department as per the table below:

Category	Incentive
Eligible Data Centre Entities (New and Existing)	— 100% for 5 years from the month of commencement of commercial operation during the policy period. — This shall be provided to Data Centre entities in all districts of Karnataka.

2. Applicant shall apply for Exemption from Electricity Duty within 12 months from the date of registration with KITS as a Data Centre Entity.
3. A dedicated electricity meter in the name of the Applicant is required to be installed with the applicable Government electricity supply agency exclusively for this new or existing capacity.
4. This exemption shall be in accordance with the enabling notification issued by the Energy Department, Government of Karnataka and shall be effective after the issue of the same

3.8.2.List of Documents

The following documents need to be submitted/uploaded with the duly filled application form in the prescribed format provided in Section 4.9 as per the application process detailed in Section 3.8.3.

The Applicant shall submit the application along with the following set of documents:

i. Application form in the prescribed format provided in Section 4.9
ii. Copy of the Registration Certificate issued by KITS/Department
iii. Undertaking for Exemption from Electricity Duty in the prescribed format provided in Section 5.20
iv. Self-attested copy of partnership deed/Certificate of incorporation/Bye-laws, if applicable
v. Self-attested copy of first electricity bill
vi. Self-attested copies of the last 3 months electricity bills from the date of submission of the application with payment receipts for the duration of claiming the exemption
vii. Self-attested copy of the DLSWCC/SLSWCC approval (if obtained) by the unit
viii. Self-attested copy of ESCOMs power sanction letter and service letter with R.R. No. and date as provided in Annexure 6.2

3.8.3.Application Process

1. Applicant should be successfully registered with KITS/Department as per the process defined in Section 2
2. Upon successful registration, the Applicant is required to submit the application form in the prescribed format provided in Section 4.9, along with the list of documents as listed in Section 3.8.2
3. KITS shall undertake the scrutiny of the submitted application and verification of the supporting documents and conduct the required internal audit/inspection/site visit (as applicable) to ascertain the authenticity of the application
4. KITS shall prepare a report to capture its findings and shall place the same before the Review and Monitoring Committee for their appraisal
5. The Review and Monitoring committee shall review the report. If the Application is found to be in compliance with the Policy and its Operational Guidelines, the Committee will sanction the final approval. In case the application is not eligible or not in compliance with the Policy and its Operational Guidelines, the committee shall reject the application
6. Post satisfaction of the genuineness of the facts and approval, an Exemption from Electricity Duty Certificate (in the format provided in Section 5.19), will be issued to the Assistant Executive Engineer of the respective ESCOM by KITS. A copy of the sanction letter shall also be sent to the applicant
7. Upon successful approval of the application, the Applicant is required to sign and submit the undertaking to the Department (in the format provided in Section 5.20) on their letter head.

4. Annexure: Formats for Applications Forms

4.1.KITS Registration Form

Applicants shall apply for KITS Registration through the Department's website https://itbtst.karnataka.gov.in as per the below format:

	Application for 'KITS Registration'	
User Information		
S.No.	**Basic Information**	
	Name of the Applicant	
	Email	
	Mobile	
	GSC Number	
	Sakala created on	*Date:*
	Name & Brief Background	
	Entity Name	
	Nature of Business	*1. Data Centre* *2. Data Centre Operator* *3. Data Centre Park Developer* *4. Cloud Service Provider*
	URL	
	Logo	*Upload Document*
	Technology and Sector of Operation	
	Area of operation	
	Product activity/Service activity	
	Percent of Technical Employees out of the total employees	*----%*
	Unit Information and Records	
	Unit Category	*<Data Centre>*
	Status of the Unit Undertaking	*1. Under Implementation* *2. Commencement of Operations*
	Registration or Amendment	
	Commencement of Commercial Operations	*Date:*
	Date of Incorporation/Statutory Registration/ Year of Establishment	*Date:*

	Incorporation Number	
	PAN Number	
	Total Employment	
	Address as stated in Incorporation Certificate	
	Upload Incorporation Certificate/Statutory Registrations/Statutory licenses for operation	*Upload Document*
	Unit Information	
Unit Address Total Employee Women Employee Total Capacity (MW) Total Investment made (INR) ***1.*** ***2.*** ***<Add Row>***		
	Detailed Background	
	Correspondence Address of the Company	*Address:* *Taluk:* *District:* *Pin code:* *Upload Power of Attorney/board resolution appointment for Authorized Person who would be coordinating with the Dept. on behalf of the company/entity:*
	Entity Contact Details	*Land Line No:* *Fax No:* *Mobile:*
	Contact Details of Managing Director/CEO/ Chief Promoter	*Name:* *Land Line No:* *Mobile:* *Email ID:*
	Background of the Founder/Promoter	*Nationality:* *Age:* *Mobile:* *Email ID:*
	Applicants Profile	*Male/Female:* *SC/ST/OBC/Others:* *Engineering Graduate/Others:*

	Contact details of the Authorized Person who would be coordinating with the Dept. on behalf of the Entity	*Name:* *Landline:* *Fax:* *Mobile:* *Email ID:*
	Registration Fees	
	GST Number	
	Uploaded GST File	
	Declaration	
	Audited financial statements for the last one year of operations of the applicant and annual reports	*Upload Document*
	Newly incorporated Entities Self – attested detailed project reports on the business that includes financial projections for the next three years	*Upload Document*
	Certified copy of Memorandum and Articles of Association/Certificate of Commencement of business/Partnership Deed/Trust Deed/Registration Certificate from Registrar of firms/ societies, as the case may be	*Upload Document*
	Lease deed/sale deed/Khata of the entity	*Upload Document*
	STPI registration/registration letter (if applicable)	*Upload Document*
	Please download the annexure below to be printed on Applicant's letter head and upload the duly signed copy	*Upload Document*
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.2.Application for Special Provisions in Building Norms

Step wise guidelines on submitting the application under 'Special Provisions in Building Norms' are also available on https://itbtst.karnataka.gov.in/

	Form <No.>: Application for 'Special Provisions in Building Norms'	
S.No.	**Basic Information**	
	KITS Provisional Registration Number:	*No:*_____
	Date of Provisional Registration with KITS/ Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	_____
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	_____
	Name of the District of the Unit	_____
	Date of Commencement of Commercial Operations in Karnataka:	*Date:*
	Details of first Sale Invoice (in INR):	*Amount: INR*_____ *Date of Invoice:* _____ *Invoice No.:* _____

	Form <No.>: Application for 'Special Provisions in Building Norms'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT): _____* *Name of Account Holder: _____*
S.No.	**Details for 'Special Provisions in Building Norms'**	
	Type of Relaxation/Modification in Building Norms *(select as applicable)*	Zoning Regulations i. Ground Coverage ii. Car Parking iii. Floor Area Ratio
		Building Norms i. Floor to ceiling height (One floor) ii. Installation of chillers on the rooftop iii. Boundary Wall iv. Opening in Building v. Multi-level DG stacking vi. Data Centre/Parks in Any Land Zone

	Form <No.>: Application for 'Special Provisions in Building Norms'	
	Agency for Land Allocation (KIADB/ KSSIDC/KSIIDC/KEONICS etc.)	
	Allotment No.	*No.:* *Date:*
	Approval Authority (SHLSWCC/SLSWCC/ DLSWCC)	
	Area	_____ *Acres* _____ *Gunta* _____*Sq. mtrs*
	Survey No. & Hobli	*Sy No.* _____*, Hobli* _____
	Details of Industrial Area	*Plot No:* _____ *Area of the Plot:* _____ *Sq. mtrs* *Latitude:* _____ *Longitude:* _____
	Draft Sale/Lease cum Sale Deed and Lease Period	*Date:* *Lease Period:*
	Date of Building Plan Approval	*Date:*
	Approval Authority	
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.3.Application for 'Capital Subsidy'

Step wise guidelines on submitting the application under 'Capital Subsidy' are also available on https://itbtst.karnataka.gov.in/

	Form <No.>: Application for 'Capital Subsidy'	
S.No.	**Basic Information**	
	KITS Registration Number:	*No:*_____
	Date of Registration with KITS/Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	_____
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	_____
	Name of the District of the Unit	_____
	Date of Commencement of Commercial Operations in Karnataka:	*Date:*
	Details of first Sale Invoice (in INR):	*Amount: INR*_____ *Date of Invoice:* _____ *Invoice No.:* _____

	Form <No.>: Application for 'Capital Subsidy'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT): _____* *Name of Account Holder: _____*
S.No.	**Details for 'Capital Subsidy'**	
	Electric Power Connection RR No.:	_____
	Total Investment in the Unit	INR: _____
	Total Value of Fixed Assets	INR: _____
a.	Plant and Machinery (R&D equipment and such other productive assets like tools, jigs & fixtures, dyes, utilities like boilers, compressors, DG Sets, cranes, material handling equipment and such other equipment directly related to production purposes):	INR: _____
b.	IT Infrastructure: (Computers, Servers, Security, LAN equipment etc.)	INR: _____
c.	Others	INR: _____
	Amount of Capital Subsidy Claimed:	INR: _____
	Annual Amount of Capital Subsidy Claimed	INR: _____

	Form <No.>: Application for 'Capital Subsidy'	
	Amount claimed as Percentage of Total VFA	INR: _____
	Total Amount for Capital Subsidy availed previously	INR_____
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.4.Application for 'Land Subsidy'

Step wise guidelines on submitting the application under 'Land Subsidy' are also available on https://itbt.karnataka.gov.in

	Form <No.>: Application for 'Land Subsidy'	
S.No.	**Basic Information**	
	KITS Registration Number:	*No:*
	Date of Registration with KITS/Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	
	Name of the District of the Unit	
	Date of Commencement of Commercial Operations in Karnataka:	*Date:*
	Details of first Sale Invoice (in INR):	*Amount: INR*_____ *Date of Invoice:* _____ *Invoice No.:* _____

	Form <No.>: Application for 'Land Subsidy'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT): _____* *Name of Account Holder: _____*
S.No.	**Details of Land Allotted/Purchased and Cost of Land (if any):**	
	Agency for Land Allocation (KIADB/ KSSIDC/KSIIDC/KEONICS etc.)	
	Allotment No.	*No.:* *Date:*
	Approval Authority (SHLSWCC/SLSWCC/ DLSWCC)	
	Area	*_____ Acres _____ Gunta _____Sq. mtrs*
	Survey No. & Hobli	*Sy No. _____, Hobli _____*
	Details of Industrial Area	*Plot No: _____* *Area of the Plot: _____ Sq. mtrs* *Latitude: _____* *Longitude: _____*
	Draft Sale/Lease cum Sale Deed and Lease Period	*Date:* *Lease Period:*
	Is there any Solar Power Plant set up in the land area considered for the claim	*Yes/No*
	If Yes, please specify	*_____ Acres*

	Form <No.>: Application for 'Land Subsidy'	
S.No.	**Details for Land Subsidy**	
	Date of Commencement of Commercial Operations	*Date:*
	Total Expenditure on Land	*INR*_____
b.	— Price of the Land	*INR*_____
c.	— Extent of Land	_____*acres*
	Amount of Land Subsidy Claimed	*INR*_____
	Amount claimed as percentage of total expenditure on Land	*---------%*
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.5. Application for 'Exemption of Stamp Duty and Concessional Registration Charges'

Step wise guidelines on submitting the application under 'Stamp Duty Exemption and Concessional Registration Charges' are also available on https://itbtst.karnataka.gov.in

	Form <No.>: Application for 'Exemption of Stamp Duty and Concessional Registration Charges'	
S.No.	**Basic Information**	
	KITS Provisional Registration Number:	*No:*
	Date of Provisional Registration with KITS/ Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	
	Name of the District of the Unit	
	Proposed Date of Commencement of Commercial Operations in Karnataka:	*Date:*

	Form <No.>: Application for 'Exemption of Stamp Duty and Concessional Registration Charges'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Land Owner's Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT):* *_____* *Name of Account Holder: _____*
	Stamp Duty Exemption applied for	• *Loan* • *Land*
	Amount of Exemption Claimed on Stamp Duty	*_____ INR*
	Amount of Concessional Registration Charges Claimed	*_____ INR*
S.No	**Details of Land Allotted/Purchased and Cost of Land (if any):**	
	Agency for Land Allocation (KIADB/ KSSIDC/KSIIDC/KEONICS etc.)	
	Allotment No.	*No.:* *Date:*
	Approval Authority (SHLSWCC/SLSWCC/ DLSWCC)	
	Area	*_____ Acres _____ Gunta* *_____Sq. mtrs*

	Form <No.>: Application for 'Exemption of Stamp Duty and Concessional Registration Charges'	
	Survey No. & Hobli	*Sy No. _____, Hobli _____*
	Details of Industrial Area	*Plot No: _____* *Area of the Plot: _____ Sq. mtrs* *Latitude: _____* *Longitude: _____*
	Draft Sale/Lease cum Sale Deed and Lease Period	*Date:* *Lease Period:*
S.No	**Details of Term Loan sanctioned (if any):**	
	Name of Bank	
	Bank Branch Details	
	Amount of Term Loan sanctioned	*INR_____*
	Rate of Interest	----------%
	Date of Term Loan sanctioned	*Date:*
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.6.Application for 'Exemption of Land Conversion Fees'

Step wise guidelines on submitting the application under 'Exemption of Land Conversion Fee' are also available on https://itbt.karnataka.gov.in

	Form <No.>: Application for 'Exemption of Land Conversion Fees'	
S.No.	**Basic Information**	
	KITS Provisional Registration Number:	*No:*_____
	Date of Provisional Registration with KITS/ Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	
	Name of the District of the Unit	
	Proposed Date of Commencement of Commercial Operations in Karnataka:	*Date:*
	Authorized Person	*Name:* _____ *Designation:* _____ *Phone No:*_____ *Email ID:*

	Form <No.>: Application for 'Exemption of Land Conversion Fees'	
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Land Owner's Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT): _____* *Name of Account Holder: _____*
S.No.	**Details for 'Exemption of Land Conversion Fees'**	
	Agency for Land Allocation (KIADB/ KSSIDC/KSIIDC/KEONICS etc.)	
	Allotment No.	*No.:* *Date:*
	Approval Authority (SHLSWCC/SLSWCC/ DLSWCC)	
	Area	*_____ Acres _____ Gunta _____Sq. mtrs*
	Survey No. & Hobli	*Sy No. _____, Hobli _____*
	Details of Agricultural Area	*Plot No: _____* *Area of the Plot: _____ Sq. mtrs* *Latitude: _____* *Longitude: _____*
	Amount of Exemption Claimed	*INR----------*

	Form <No.>: Application for 'Exemption of Land Conversion Fees'	
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.7.Application for 'Power Tariff Concession'

Step wise guidelines on submitting the application under 'Power Tariff Concession' are also available on https://itbtst.karnataka.gov.in

	Form <No.>: Application for 'Power Tariff Concession'	
S.No.	**Basic Information**	
	KITS Registration Number:	*No:*_____
	Date of Registration with KITS/Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	
	Name of the District of the Unit	
	New/Existing Unit (applying for the claim):	
	Date of Commencement of Commercial Operations in Karnataka:	
	Details of first Sale Invoice (in INR):	*Amount: INR*_____ *Date of Invoice:* _____ *Invoice No.:* _____

	Form <No.>: Application for 'Power Tariff Concession'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT):* *_____* *Name of Account Holder:*
S.No.	**Details for 'Power Tariff Concession'**	
	Unit setup in	• *Own land & building* • *Rented/leased land* • *Rented/leased building*
	Sub-Division No	
	Electricity Supply Companies (ESCOM's) Details	
	Electric Power Connection Revenue Register (RR) No.	
	Account ID	
	Name and Address as per the ESCOM Bill	
	Average Unit Consumed Monthly for the last three months	
	Total Consumption of the Entity per month	
	Average Total Green Energy Component as percentage of Total Energy consumption for the last three months	_____%
	Total Consumption from the Grid per	

	Form <No.>: Application for 'Power Tariff Concession'	
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.8.Application for 'Green Power Tariff Reimbursement'

Step wise guidelines on submitting the application under 'Green Power Tariff Reimbursement' are also available on https://itbtst.karnataka.gov.in

	Form <No.>: Application for 'Green Power Tariff Reimbursement'	
S.No.	**Basic Information**	
	KITS Registration Number:	*No:*_____
	Date of Registration with KITS/Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	
	Name of the District of the Unit	
	New/Existing Unit (applying for the claim):	
	Date of Commencement of Commercial Operations in Karnataka:	
	Details of first Sale Invoice (in INR):	*Amount: INR*_____ *Date of Invoice:* _____ *Invoice No.:* _____

	Form <No.>: Application for 'Green Power Tariff Reimbursement'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT): _____* *Name of Account Holder:*
S.No.	**Details for 'Green Power Tariff Reimbursement'**	
	Unit setup in	• *Own land & building* • *Rented/leased land* • *Rented/leased building*
	Sub-Division No	
	Electricity Supply Companies (ESCOM's) Details	
	Electric Power Connection Revenue Register (RR) No.	
	Account ID	
	Name and Address as per the ESCOM Bill	
	Average Unit Consumed Monthly	
	Total Consumption of the Entity per month	
	Total Consumption from Renewable Energy Sources per month	
	Total Consumption from the Grid per	
	Total amount of Green Power Tariff Reimbursement availed previously	INR _____

	Form <No.>: Application for 'Green Power Tariff Reimbursement'	
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

4.9.Application for 'Exemption of Electricity Duty'

Step wise guidelines on submitting the application under 'Exemption of Electricity Duty' are also available on https://itbtst.karnataka.gov.in

	Form <No.>: Application for 'Exemption of Electricity Duty'	
S.No.	**Basic Information**	
	KITS Registration Number:	*No:*_____
	Date of Registration with KITS/Department	*Date:*
	Whether the Applicant has paid the One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Yes/No*
	Details of One-Time Application Processing Fee for Availing Benefits under Karnataka Data Centre Policy 2022	*Receipt No:* *Date:*
	Name of the Applicant	
	Registered Office Address	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Address of the Unit to be Considered for the Claim	*Address Line 1:* _____ *Address Line 2:* _____ *Street:* _____ *City/Town/Village:* _____ *Taluka:* _____ *District:* _____ *Pin Code:* _____ *State:* _____
	Name of the Taluk of the Unit	
	Name of the District of the Unit	
	New/Existing Unit (applying for the claim):	
	Date of Commencement of Commercial Operations in Karnataka:	
	Details of first Sale Invoice (in INR):	*Amount: INR*_____ *Date of Invoice:* _____ *Invoice No.:* _____

	Form <No.>: Application for 'Exemption of Electricity Duty'	
	Authorized Person	*Name: _____* *Designation: _____* *Phone No:_____* *Email ID:*
	Contact Details for Communication	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	CEO/Director Contact Details	*Name: _____* *Designation: _____* *Phone No:_____* *Mobile: _____* *Email ID:_____*
	Applicant's Bank Details	*Bank Name: _____* *Branch Name: _____* *Branch Address: _____* *Branch IFSC Code: _____* *Account Number (for NEFT): _____* *Name of Account Holder: _____*
S.No.	**Details for 'Exemption of Electricity Duty'**	
	Unit setup in	• *Own land & building* • *Rented/leased land* • *Rented/leased building*
	Sub-Division No	
	Electricity Supply Companies (ESCOM's) Details	
	Account ID	
	Name and Address as per the ESCOM Bill	
	Average Unit Consumed Monthly for the last three months	
	Total Consumption of the Entity per month	
	Electric Meter RR No. (Power, Line, Lighting):	
	Amount of Exemption Claimed	*INR----------*

	Form <No.>: Application for 'Exemption of Electricity Duty'	
I/We hereby certify that the particulars given above and in the appended enclosures are true and correct to the best of my/our knowledge and belief and that no material facts have been concealed or suppressed		
	Date: **Place:**	**Name:** **Signature:** **Designation:** **Mobile No.:**

5. Annexure: Formats for Undertaking/Certification Letter

5.1. Format of Undertaking to be submitted at the time of Registration under KITS/ Department

DECLARATION BY APPLICANT

(to be provided on letterhead of applicant)

I, (full name) .....S/o, D/o W/o H/o..... (Managing Director/Director/Proprietor/ Partner), as Authorized Representative of M/s.....(Complete address), do hereby solemnly affirm and declare that all information and documents provided, and the particulars stated in the application are true and correct to the best of my knowledge, information, and belief.

I have read and understood all the terms and conditions and hereby agree to abide by them. I further confirm that I shall abide by the same and such other conditions as may be laid down time to time by the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T), Government of Karnataka

Name: .....

Signature and Seal: .....

Place: .....

Date: .....

DRAFT

5.2.Format of Registration Certificate

GOVERNMENT OF KARNATAKA

DEPARTMENT OF INFORMATION TECHNOLOGY BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

REGISTRATION CERTIFICATE

This is to certify that M/s_____, having its Registered Office at the address: _____ , is registered as a **"Data Centre Entity"** with this Directorate for the unit located at the address: _____ and has been allotted Registration Number as given here under:

GSC No: _____

Registration No: _____

Date:

Place:

Managing Director

KITS, Dept. of Electronics, IT, Bt and S&T

BMTC Building, 'B' Block, 4th Floor, K.H. Road,

Bengaluru – 560 027

1. *This Registration is valid for the Unit location, Services, and constitution of the Unit at the time of issuance of this Certificate.*
2. *This Registration is liable for revocation/cancellation in the event of any misuse or unauthorized diversion.*

5.3.Format of Special Provisions in Building Norms Certificate

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

CERTIFICATE

Sub: Issue of Certificate for availing Special Provisions in Building Norms to M/s ……

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Urban Development Dept. Notification No…Dated: …
3) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s …….is a Data Centre Unit set up as an independent activity, established in the year …… vide certificate No.……dated: ……. issued by ……
2. The Unit is entitled to avail the following special provisions in building norms under the Data Centre Policy dated 07.05.2022 and as per the Govt. Order and Urban Development Dept. Notification cited at reference above:

i. Zoning Regulations

Ground coverage:
Floor Area Ratio
Car Parking

ii. Building Bye-Laws

Floor to ceiling height (One floor)
Installation of chillers on the rooftop

Boundary Wall

Opening in building

Multi-level DG stacking

Data Centre/parks in any land zone

5.4.Format of Undertaking for Availing Special Provisions in Building Norms

DECLARATION FOR SPECIAL PROVISIONS IN BUILDING NORMS

(to be provided on a Stamp Paper of INR 200)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned special provisions in Building Norms under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of the Data Centre activities.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. If the State Government/Financial Institution concerned is satisfied that the Special Provisions in Building Norms have been obtained by misrepresentation of essential fact, furnishing false information after the approval of the incentive, the State Government/ Financial Institution concerned shall have the right to revoke the provisions enabled.
3. The grantee shall not change the location of the whole or any part of the entity within a period of five years after the entity receives this grant.
4. In the event of the incentive being sanctioned, which at later date is found to be not actually due, the Government shall revoke such special provisions in Building Norms as determined by KITS.
5. Where the entity remains closed without activities within one year from the date of receipt of exemption, except in case where the entity remains closed for short period extending not more than six months due to reasons beyond control, such as shortage of raw materials, power etc., the grantee shall refund to Government the equivalent incentive amount. If the entity fails to refund the amount the same shall be recovered as arrears of land revenue.
6. The Special Provisions in Building Norms certified herein shall not be construed as a "contract" with Government of Karnataka.

7. Breakdown of the Special Provisions in Building Norms:

i. Zoning Regulations

Ground coverage:	
Floor Area Ratio	
Car Parking	

ii. Building Bye-Laws

Floor to ceiling height (One floor)	
Installation of chillers on the rooftop	
Boundary Wall	
Opening in building	
Multi-level DG stacking	
Data Centre/parks in any land zone	

Witness: Signature of the Grantee

1.

2.

Common Seal of the Entity

5.5.Format of Capital Subsidy Sanction Letter

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

SANCTION LETTER

Sub: Issue of Sanction Letter to ……. as a Data Centre Entity to avail the benefit of Capital Subsidy

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The committee has accepted the investment as detailed below:

Sl	Particulars	Amount (in INR Crore)
1	Total Investment in the Unit	INR: _____
2	Total VFA	INR: _____
a.	Plant and Machinery	INR: _____
b.	IT Infrastructure	INR: _____
c.	Others	INR: _____
3.	Amount of Capital Subsidy Claimed:	INR: _____
4.	Amount claimed as Percentage of Total VFA	----------%
	Total	

3. The amount of capital subsidy to which you are eligible is determined at INR …… (INR …… Only) at ……% of the above investment under Karnataka Data Centre Policy 2022 and limited to Rs. …… (Maximum limit of INR 2 Crore annually)

Sd/-
(Name:)
(Designation:)
Seal
(Competent Authority)

To

5.6. Format of Undertaking for Availing Capital Subsidy

DECLARATION FOR CAPITAL SUBSIDY

(to be provided on a Stamp Paper of INR 200)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned a Capital Subsidy under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of the Data Centre activities.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. If the State Government/Financial Institution concerned is satisfied that the capital subsidy has been obtained by misrepresentation of essential fact, furnishing false information after the release of full subsidy, the State Government/Financial Institution concerned shall have the right to claim refund of the grant/subsidy of Rs. _____ (Rs. _____ only) paid to the grantee together with such interest as the State Govt./Financial Institution concerned may charge.
3. The grantee shall not change the location of the whole or any part of the entity or effect any contraction or disposal of a part of its total VFA within a period of five years after the entity receives this grant.
4. In the event of the subsidy being sanctioned, which at later date is found to be not actually due, the grantee shall refund to Government such portion or the whole amount as determined by KITS. On failure to do so, such amount shall be recovered by the Government as arrears of land revenue.
5. Where the entity remains closed without activities within one year from the date of receipt of subsidy, except in case where the entity remains closed for short period extending not more than six months due to reasons beyond control, such as shortage of raw materials, power etc., the grantee shall refund to Government the entire subsidy received. If the

enterprise fails to refund the subsidy amount the same shall be recovered as arrears of land revenue.

6. The capital subsidy sanctioned herein is in the nature of "Grant-in-aid" and shall not be construed as a "contract" with Government of Karnataka. The grantee shall not exercise his right of privacy of contract in the matter of release of subsidy by Government of Karnataka, who shall release the subsidy amount as and when the grantee is eligible for the same, in such proportions and instalments as the Government may regulate. The subsidy sanctioned will be released directly through NEFT/RTGS to the concerned Financial Institutions/Banks.

7. That the grantee shall not exercise his right of claiming release of subsidy amount out-of-turn either directly or through his attorney and that the decision of the Government in the matter of periodic release based on the availability of funds shall be final and binding on the grantee.

8. Breakdown of the VFA:

Sl	Particulars	Amount (in INR Crore)
1	Total Investment in the Unit	INR: _____
2	Total VFA	INR: _____
a.	— Plant and Machinery	INR: _____
b.	— IT Infrastructure	INR: _____
c.	— Others	INR: _____
3.	Amount of Capital Subsidy Claimed:	INR: _____
4.	Amount claimed as Percentage of Total VFA	----------%
5.	Amount claimed previously under the incentive	INR _____
Total		

Witness: Signature of the Grantee

1.

2.

Common Seal of the Entity

5.7.Format of Land Subsidy Sanction Letter

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

SANCTION LETTER

Sub: Issue of Sanction Letter to …… as a Data Centre Entity to avail the benefit of Land Subsidy

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The Unit has been allotted *land/plot/shed to the extent of…… acres in *KIADB/ KSSIDC/KEIONICS/Industrial Co-operative society in …… industrial area for the Data Centre activity …… or the Unit has obtained permission from the *Deputy Commissioner district/Government
3. The committee has accepted the investment as detailed below:

Sl	Particulars	Amount (in INR Crore)
1	Total Investment in the Unit	INR: _____
a.	Total Expenditure on Land	INR: _____
b.	Price of the Land	INR: _____
c.	Extent of Land	
2.	Amount of Land Subsidy Claimed	INR: _____
3.	Amount claimed as percentage of total expenditure on Land	----------%
	Total	

4. The amount of land subsidy to which you are eligible is determined at INR …… (INR …… Only) at ……% of the above investment under Karnataka Data Centre Policy 2022 and limited to Rs. …… (Maximum limit of INR 3 Crore)

Sd/-
(Name:)
(Designation:)

5.8.Format of Undertaking for Availing Land Subsidy

DECLARATION FOR LAND SUBSIDY

((to be provided on a Stamp Paper of INR 200)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned a Land Subsidy under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of the Data Centre activities.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. If the State Government/Financial Institution concerned is satisfied that the land subsidy has been obtained by misrepresentation of essential fact, furnishing false information after the release of full subsidy, the State Government/Financial Institution concerned shall have the right to claim refund of the grant/subsidy of Rs. _____ (Rs. _____ only) paid to the grantee together with such interest as the State Govt./Financial Institution concerned may charge.
3. The grantee shall not change the location of the whole or any part of the entity or effect any contraction or disposal of a part of its total land within a period of five years after the entity receives this grant.
4. In the event of the subsidy being sanctioned, which at later date is found to be not actually due, the grantee shall refund to Government such portion or the whole amount as determined by KITS. On failure to do so, such amount shall be recovered by the Government as arrears of land revenue.
5. Where the entity remains closed without activities within one year from the date of receipt of subsidy, except in case where the entity remains closed for short period extending not more than six months due to reasons beyond control, such as shortage of raw materials, power etc., the grantee shall refund to Government the entire subsidy received. If the

entity fails to refund the subsidy amount the same shall be recovered as arrears of land revenue.

6. The land subsidy sanctioned herein is in the nature of "Grant-in-aid" and shall not be construed as a "contract" with Government of Karnataka. The grantee shall not exercise his right of privacy of contract in the matter of release of subsidy by Government of Karnataka, who shall release the subsidy amount as and when the grantee is eligible for the same, in such proportions and instalments as the Government may regulate. The subsidy sanctioned will be released directly through NEFT/RTGS to the concerned Financial Institutions/Banks.

7. That the grantee shall not exercise his right of claiming release of subsidy amount out-of-turn either directly or through his attorney and that the decision of the Government in the matter of periodic release based on the availability of funds shall be final and binding on the grantee.

8. Breakdown of the expenditure on land for subsidy:

Sl	Particulars	Amount (in INR Crore)
1	Total Investment in the Unit	INR: _____
a.	— Total Expenditure on Land	INR: _____
b.	— Price of the Land	INR: _____
c.	— Extent of Land	
2.	Amount of Land Subsidy Claimed	INR: _____
3.	Amount claimed as percentage of total expenditure on Land	----------%
Total		

Witness: Signature of the Grantee

1.

2.

Common Seal of the Entity

5.9. Format of Stamp Duty Exemption and Concessional Registration Charges Certificate

i. Stamp Duty Exemption Certificate - Land Documents

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

CERTIFICATE

Sub: Issue of Certificate to …… as a Data Centre Entity to avail the benefit of Stamp Duty Exemption and Concessional Registration Charges

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Revenue Dept. Notification No… dated: …
3) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The Unit has been approved by DLSWCC/SLSWCC/SHLCC in its meeting held on …… and Govt. Order No…… dated …… is issued and is eligible for benefits under the Karnataka Data Centre Policy 2022
3. As per Govt. Order No. ……dated: …… the Unit is situated in ……
4. The Unit has been allotted *land/plot/shed to the extent of …… acres in *KIADB/KSSIDC/KEIONICS/Industrial Co-operative society in …… industrial area for the Data Centre activity …… or the Unit has obtained permission from the *Deputy Commissioner district/Government
5. This unit has obtained lease of immovable property for a period of …… years in respect of property No……extent…… situated at …… for the purpose of ……
6. This unit has purchased the property bearing …… No. …… measuring …… situated at …… for the purpose of ……
7. This Unit is eligible for *100% exemption/concession of Stamp Duty and the Registration charges payable at *INR 1 for every INR 1000/- value of *lease / lease cum sale / absolute sale agreement, vide Government Notification No. <>*[*as*

ii. Stamp Duty Exemption Certificate - Loan Documents

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

CERTIFICATE

Sub: Issue of Certificate to …… as a Data Centre Entity to avail the benefit of Stamp Duty Exemption and Concessional Registration Charges

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Revenue Dept. Notification No… dated: …
3) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The Unit has been approved by DLSWCC/SLSWCC/SHLCC in its meeting held on …… and Govt. Order No…… dated …… is issued and is eligible for benefits under the Karnataka Data Centre Policy 2022
3. As per Govt. Order No. ……dated: …… the Unit is situated in ……
4. It is certified that the Unit is proposed to establish/develop Data Centre industry outside Bengaluru Urban district as per the Karnataka Data Centre Policy 2022
5. The …… has been sanctioned Term Loan/Working Capital Loan of Rs..... by bank/financial institutions (Name of Bank/financial institutions) to establish/develop ……with a Project Cost of Rs.....
6. This Unit is eligible for *100% exemption/concession of Stamp Duty and the Registration charges payable at *INR 1 for every INR 1000/- value of *lease / lease cum sale / absolute sale agreement, vide Government Notification No. <>*[as applicable]

Sd/-
(Name:)
(Designation:)
Seal

5.10.Format of Undertaking for Availing Stamp Duty Exemption and Concessional Registration Charges

DECLARATION FOR EXEMPTION OF STAMP DUTY AND CONCESSIONAL REGISTRATION CHARGES

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Exemption of Stamp Duty and Concessional Registration Charges)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned an exemption of stamp duty and concessional registration charges under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of the Data Centre activities.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. If the State Government/Financial Institution concerned is satisfied that the exemption of stamp duty and concessional registration charges has been obtained by misrepresentation of essential fact, furnishing false information after the approval of exemption, the State Government/Financial Institution concerned shall have the right to claim refund of the amount equivalent of Rs. _____ (Rs. _____ only) with such interest as the State Govt./Financial Institution concerned may charge.
3. The grantee shall not change the location of the whole or any part of the entity or effect any contraction or disposal of a part of its total land within a period of five years after the entity receives this grant.
4. In the event of the exemption being sanctioned, which at later date is found to be not actually due, the grantee shall refund to Government such portion or the whole amount as

determined by KITS. On failure to do so, such amount shall be recovered by the Government as arrears of land revenue.

5. Where the entity remains closed without activities within one year from the date of receipt of exemption, except in case where the entity remains closed for short period extending not more than six months due to reasons beyond control, such as shortage of raw materials, power etc., the grantee shall refund to Government the entire exemption amount received. If the entity fails to refund the exemption amount the same shall be recovered as arrears of land revenue.

6. The exemption of stamp duty and concessional registration charges sanctioned herein is in the nature of "Grant-in-aid" and shall not be construed as a "contract" with Government of Karnataka. The grantee shall not exercise his right of privacy of contract in the matter of release of amount by Government of Karnataka, who shall release the amount as and when the grantee is eligible for the same, in such proportions and instalments as the Government may regulate. The amount sanctioned will be released directly through NEFT/RTGS to the concerned Financial Institutions/Banks.

7. That the grantee shall not exercise his right of claiming release of exemption amount out-of-turn either directly or through his attorney and that the decision of the Government in the matter of periodic release based on the availability of funds shall be final and binding on the grantee.

Witness: Signature of the Grantee

1.

2.

Common Seal of the Entity

5.11.Format of Land Conversion Fees Exemption Certificate

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

CERTIFICATE

Sub: Issue of Certificate to …… as a Data Centre Entity to avail the benefit of Land Conversion Fee Exemption

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Revenue Dept Notification No… dated: …
3) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The Unit has been approved by DLSWCC/SLSWCC/SHLCC in its meeting held on …… and Govt. Order No…… dated …… is issued and is eligible for benefits under the Karnataka Data Centre Policy 2022
3. M/s. …… have made an application cited in ref (--) for availing exemption of Land Conversion Fees paid for conversion of …… acres of land which was in the name of Sri/Smt. …… situated in Survey No……of …… Village, …… Taluk, …… District for having established the Data Centre …….
4. The Unit's requirement of land has been examined in detail and found that …… acres of land was essential for setting up the said Unit. It is eligible for exemption of payment of conversion fee for conversion of the above land from agricultural to non-agricultural industrial purpose, in terms of G.O. No. ……dated ……
5. Accordingly, the Unit is exempted of land conversion fee to the extent of 100%.

Sd/-
(Name:)
(Designation:)
Seal
(Competent Authority)

To

5.12.Format of Undertaking for Availing Land Conversion Fees Exemption

DECLARATION FOR EXEMPTION OF LAND CONVERSION FEES

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Exemption of Land Conversion Fees)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned an exemption of land conversion fees under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of the Data Centre activities.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. If the State Government/Financial Institution concerned is satisfied that the exemption of land conversion fees has been obtained by misrepresentation of essential fact, furnishing false information after the approval of exemption, the State Government/Financial Institution concerned shall have the right to claim refund of the amount equivalent of Rs. _____ (Rs. _____ only) with such interest as the State Govt./Financial Institution concerned may charge.
3. The grantee shall not change the location of the whole or any part of the entity or effect any contraction or disposal of a part of its total land within a period of five years after the entity receives this grant.
4. In the event of the exemption being sanctioned, which at later date is found to be not actually due, the grantee shall refund to Government such portion or the whole amount as determined by KITS. On failure to do so, such amount shall be recovered by the Government as arrears of land revenue.
5. Where the entity remains closed without activities within one year from the date of receipt of exemption, except in case where the entity remains closed for short period extending

not more than six months due to reasons beyond control, such as shortage of raw materials, power etc., the grantee shall refund to Government the entire exemption amount received. If the entity fails to refund the exemption amount the same shall be recovered as arrears of land revenue.

6. The exemption of land conversion fees sanctioned herein is in the nature of "Grant-in-aid" and shall not be construed as a "contract" with Government of Karnataka.

Witness: Signature of the Grantee

1.

2.

Common Seal of the Entity

5.13.Format of Power Tariff Concession Certificate

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

CERTIFICATE

Sub: Issue of Certificate for availing Power Tariff Concession to M/s …

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) GO No. KERC Order Dated: ……
3) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year… vide certificate No……dated: …… issued by ……
2. The Unit is engaged in Data Centre activities at the said address which is considered as Industrial Activity in terms of the GO cited at reference (1) for the purpose of fixation of electricity and the electricity tariff to this industry will be fixed on par with that of other industrial consumers as per the KERC Order cited at reference (2) above.
3. The percentage of Green Energy Component in the total power consumption is ……
4. The Unit is entitled to avail the benefit of power tariff for a period of _____ years, within the Policy period as per the Govt. Order and KERC Order cited at reference above.
5. The unit shall claim this concession for the power consumed on the electrical meter installed to the HT Installation bearing RR.No: ……which is in the name of the Applicant …… for their Data Centre activity from the date of issuance of this certificate.

Sd/-
(Name:)
(Designation:)
Seal
(Competent Authority)

To

Assistant Executive Engineer, <Subdivision No.>, Area, City

5.14.Format of Self Declaration on Meeting the Eligibility Criteria for Availing Power Tariff Concession

DECLARATION

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Power Tariff Concession)

I, (full name) .....S/o/D/o.....(Managing Director/Director/Proprietor/ Partner), as the Authorized Representative of M/s..... (Complete address), do hereby solemnly affirm and declare that the particulars stated in the application for availing benefits for **Power Tariff Concession** are true and correct to the best of my knowledge, information and belief.

I hereby undertake as follows:

i. The project has been approved by DLSWCC/SLSWCC/SHLCC in its meeting held on .....and Govt. Order No ..... dated ..... is issued (if any)

ii. I certify that I meet the eligibility criteria required for availing the benefits for Power Tariff Concession, as per the terms and conditions mentioned in the Karnataka Data Centre Policy 2022 and its operational guidelines.

iii. I certify that the Unit has a minimum of 30% green energy component in total power consumption of .....

iv. I certify that the Unit shall continue to meet the requirement of minimum of 30% green energy component in total power consumption of ..... during the period benefits are availed.

v. I certify that below provided details for the eligibility criteria are correct and I am submitting all the copies of the certificates/supporting documents as per the requirements.

Category	Concession
Data Centre Entities	— Eligibility of Industrial Power Tariff instead of Commercial Power Tariff for new and existing Data Centre entities in the State, as applicable for IT/ITES entities. — This will be eligible for Data Centres who have a minimum of 30% green energy component in total power consumption

In case any of the Statement/Information furnished in the application or documents are found to be wrong or incorrect or misleading, in case I/we have been not able to meet the requirement of a 30% Green Energy Component annually, during the Policy period or in case I have been found to be engaging in corrupt practices or fraudulent practices, I do hereby bind myself and my applicant entity/unit to pay to the KITS/Department/Government on demand, the full amount received as subsidy or reimbursement in respect of the above mentioned activity, within 7 (Seven) days of the demand being made to me in writing, and the Power Tariff Concession accorded to the main meter shall be discontinued by the respective ESCOM.

vi. Further, I understand that the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T) Government of Karnataka, may initiate legal proceedings against applicants who are found to have engaged in corrupt practices or fraudulent practices.

vii. I have read and understood all the terms and conditions mentioned in the Karnataka Data Policy 2022 and hereby agree to abide by them. I further confirm that I shall abide by the same and such other conditions as may be laid down time to time by the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T) Government of Karnataka, under Karnataka Data Policy 2022.

Name: .....

Signature and Seal: .....

Place: .....

Date: .....

5.15.Format of Undertaking for Availing Power Tariff Concession

DECLARATION FOR POWER TARIFF CONCESSION

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Power Tariff Concession)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned a Power Tariff Concession under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of the Data Centre activities.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. To inform immediately to KITS and the Concerned ESCOM in case the Entity changes location/closes/changes the Entity name/merger/acquisition/changes its activity in the location for which Power Tariff Concession has been taken.
3. In case of entities located in --------/Rented premises, the landlord or the entity shall submit a certificate to KITS and concerned ESCOM about continuation of their activity in the same premises every year for continuing to avail Power Tariff Concession. In the event of any entity engaged in any activity other than Data Centre activities occupying the premises in ----------/Rented premises, then the Power Tariff Concession accorded to the main meter shall be discontinued.
4. In case any of the Statement/Information furnished in the application or documents are found to be wrong or incorrect or misleading, in case I/we have been not able to meet the requirement of a 30% Green Energy Component annually, during the Policy period or in case I/we have been found to be engaging in corrupt practices or fraudulent practices, I do hereby bind myself and my applicant Entity/Unit to pay to the Government on demand, the full amount received as subsidy in respect of the above mentioned activity, within 7 (Seven) days of the demand being made to me in writing, and the Power Tariff Concession accorded to the main meter shall be discontinued by the respective ESCOM.

5. Further, I/we understand that the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T) Government of Karnataka, may initiate legal proceedings against applicants who are found to have engaged in corrupt practices or fraudulent practices.
6. I have read and understood all the terms and conditions mentioned in the Karnataka Data Centre Policy 2022 and its Operation Guidelines and hereby agree to abide by them. I further confirm that I shall abide by the same and such other conditions as may be laid down time to time by the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T) Government of Karnataka, under Karnataka Data Centre Policy 2022 and its Operation Guidelines

Witness: Signature of the Grantee

1.

2.

Common Seal of the Company

5.16.Format of Green Power Tariff Reimbursement Sanction Letter

GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

SANCTION LETTER

Sub: Issue of Sanction Letter for availing Green Power Tariff Reimbursement to M/s …

1) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
2) Letter No… dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The percentage of energy from renewable sources in the total power consumption is ……
3. The unit is eligible to avail the benefit of Green Power Tariff Reimbursement from the date of registration with KITS as a Data Centre Entity, dated: …….as per the GO cited at reference.
4. The unit has been sanctioned INR …… (INR…..In words) for ….. MW power sanctioned to the HT Installation bearing RR.No: ……which is in the name of the Applicant …… for their Data Centre activity during the Policy Period.

Sd/-
(Name:)
(Designation:)
Seal
(Competent Authority)

To

M/s……. <Address>

Copy to:

Office Copy

5.17.Format of Self Declaration on Meeting the Eligibility Criteria for Availing Green Power Tariff Reimbursement

DECLARATION

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Green Power Tariff Reimbursement)

I, (full name) .....S/o/D/o..... (Managing Director/Director/Proprietor/ Partner), as the Authorized Representative of M/s. …..... (Complete address), do hereby solemnly affirm and declare that the particulars stated in the application for availing benefits for **Green Power Tariff Reimbursement** are true and correct to the best of my knowledge, information and belief.

I hereby undertake as follows:

i. The project has been approved by DLSWCC/SLSWCC/SHLCC in its meeting held on ..... and Govt. Order No ..... dated .....is issued (if any)

ii. I certify that I meet the eligibility criteria required for availing the benefits for Green Power Tariff Reimbursement, as per the terms and conditions mentioned in the Karnataka Data Centre Policy 2022 and its operational guidelines.

iii. I certify that the Unit has a minimum of 50% renewable energy component in total power consumption of .....

iv. I certify that the Unit shall continue to meet the requirement of having minimum of 50% renewable energy component in total power consumption of .....

Category	Concession
Data Centre Entities	— Data Centre entities using energy from renewable sources above 50% will be re-imbursed INR 0.50 surcharge per unit for 5 years. — Data Centre entities shall be eligible for green power tariff re-imbursement of upto 5 MW, capped at INR 1.25 Crore. The same shall be disbursed within 5 years with an annual ceiling of INR 25 Lakhs.

I certify that below provided details for the eligibility criteria are correct and I am

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submitting all the copies of the certificates/supporting documents as per the requirements.

v. In case any of the Statement/Information furnished in the application or documents are found to be wrong or incorrect or misleading, in case I/we have been not able to meet the requirement of a 50% Renewable Energy Component annually, during the Policy period or in case I have been found to be engaging in corrupt practices or fraudulent practices, I do hereby bind myself and my applicant entity/unit to pay to the KITS/Department/Government on demand, the full amount received as subsidy or reimbursement in respect of the above mentioned activity, within 7 (Seven) days of the demand being made to me in writing, and the Green Power Tariff Reimbursement accorded to the main meter shall be discontinued by the respective ESCOM.

vi. Further, I understand that the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Government of Karnataka, may initiate legal proceedings against applicants who are found to have engaged in corrupt practices or fraudulent practices.

vii. I have read and understood all the terms and conditions mentioned in the Karnataka Data Policy 2022 and hereby agree to abide by them. I further confirm that I shall abide by the same and such other conditions as may be laid down time to time by the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Government of Karnataka, under Karnataka Data Policy 2022.

Name: .....

Signature and Seal: .....

Place: .....

Date: .....

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5.18.Format of Undertaking for Availing Green Power Tariff Concession

DECLARATION FOR GREEN POWER TARIFF REIMBURSEMENT

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Green Power Tariff Reimbursement)

The undertaking executed this day _____ of 20__ by carrying on the business of under the name and style of M/s. _____ herein after called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation and Technology Society (KITS) herein after called the Government of other part WITNESSETH.

Where KITS has sanctioned a Green Power Tariff Reimbursement under the Government of Karnataka Data Centre Policy 2022 to the grantee for the purpose of his enterprise.

The grantee hereby acknowledges, agrees and covenants as follows:

1. The particulars stated above in the application are true and correct to the best of my knowledge, information and belief
2. To inform immediately to KITS and the Concerned ESCOM in case the Entity changes location/closes/changes the Entity name/merger/acquisition/changes its activity in the location for which Green Power Tariff Reimbursement has been taken.
3. In case of entities located in -----/Rented premises, the landlord or the entity shall submit a certificate to KITS and concerned ESCOM about continuation of their activity in the same premises every year for continuing to avail Green Power Tariff Concession. In the event of any entity engaged in any activity other than Data Centre activities occupying the premises in -------/Rented premises, then the Green Power Tariff Concession accorded to the main meter shall be discontinued.
4. In case any of the Statement/Information furnished in the application or documents are found to be wrong or incorrect or misleading, in case I/we have been not able to meet the requirement of a 30% Green Energy Component annually, during the Policy period or in case I/we have been found to be engaging in corrupt practices or fraudulent practices, I do hereby bind myself and my applicant Entity/Unit to pay to the Government on demand, the full amount received as subsidy in respect of the above mentioned activity, within 7 (Seven) days of the demand being made to me in writing and the Green Power Tariff Reimbursement accorded to the main meter shall be discontinued by the respective ESCOM.

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5. Further, I/we understand that the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T) Government of Karnataka, may initiate legal proceedings against applicants who are found to have engaged in corrupt practices or fraudulent practices.
6. I have read and understood all the terms and conditions mentioned in the Karnataka Data Centre Policy 2022 and its Operation Guidelines and hereby agree to abide by them. I further confirm that I shall abide by the same and such other conditions as may be laid down time to time by the Department of Electronics, Information Technology (IT), Biotechnology (Bt), Science & Technology (S&T) Government of Karnataka, under Karnataka Data Centre Policy 2022 and its Operation Guidelines

Witness: Signature of the Grantee

1.

2.

Common Seal of the Company

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5.19.Format of Exemption of Electricity Duty Certificate

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GOVERNMENT OF KARNATAKA

DEPARTMENT OF ELECTRONICS, INFORMATION TECHNOLOGY, BIOTECHNOLOGY AND SCIENCE & TECHNOLOGY

No. Office of the
Date:

CERTIFICATE

Sub: Issue of Certificate for availing Exemption of Electricity Duty to M/s …

4) **Ref:** GO No: ITBT 79 ADM 2021, Dated 07-05-2022
5) Energy Dept. Notification No….Dated: ……
6) Letter No….. dated: ……. of M/s……

***

Sri/Smt. ……Owner/Partner/Managing Director is representing M/s. ……

This is to certify that,

1. M/s ……is a Data Centre Unit established in the year …… vide certificate No.……dated: …… issued by ……
2. The R.R number of the Unit is ……and the Unit has started commercial operation/ registered with KITS as a Data Centre Entity (as applicable) on …… as envisaged by the 1st Sale Invoice. Bill No. ……, Dated: …… issued by the Unit.
3. The Unit is entitled to avail the exemption from electricity duty from the date of registration with KITS as a Data Centre Entity, dated: ……. for a period of _____ years within the Policy period as per the Govt. Order and Energy Dept. Notification cited at reference above.

Sd/-
(Name:)
(Designation:)
Seal
(Competent Authority)

To

Assistant Executive Engineer, <Subdivision No.>, Area, City

Copy to:

1. M/s……. <Address>
2. Office Copy

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5.20.Format of Undertaking for Availing Exemption of Electricity Duty

DECLARATION FOR EXEMPTION OF ELECTRICITY DUTY

(The following undertaking shall be on the Applicant's letter head and duly signed and affixed with entity seal, and should be submitted by the Applicant while availing Exemption of Electricity Duty)

The undertaking executed this day_____of 20__ by carrying on the business of under the name and style of M/s. _____ _____hereinafter called the 'Grantee' of the one part in favor of the Governor of Karnataka, represented by Karnataka Innovation andTechnology Society (KITS), hereinafter called the Government of other part WITNESSETH.

Where KITS has sanctioned an exemption of Electricity Duty under the Government of Karnataka Data Centre Policy 2022 to the Grantee forthe purposeof their application.

The Grantee hereby acknowledges, agrees and covenants as follows:

1. To inform immediately to KITS and the concerned ESCOM in case the Applicant changes location/closes/changes the entity name / amalgamation / acquisition / changes its activity in the location for which Exemption of Electricity Duty has been taken.
2. In case of entities located in Data Centre Parks / rented premises, the landlord or the Applicant shall submit a certificate to KITS and concerned ESCOM about continuation of their activity in the same premises every year for continuing to avail Exemption of Electricity Duty. In the event of any Applicant engaged in any activity other than Data Centre activities, then the Exemption of Electricity Duty shall be discontinued.

Witness: Signature of the Grantee

1.

2.

Common Seal of the Entity

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6. Annexure

6.1. Format of CA Certified copy of Statement on Expenditure Incurred on Land

UDIN No. : _____

Location (Taluk / Indl. Area / Indl. Estate)	Survey. No. / PlotNo.	Land Required (Acre)	Date of Purchase / saledeed / allotment	Payment Details				Guidance Value
				Date	Amount (INR)	Mode of Payment	Receipt No	

Signature of the Authorized Person

DRAFT

6.2.Format of ESCOM Service Sanction Letter

On the letter head of the electricity supply company

No: Address of the issuing authority

Date:

SERVICE CERTIFICATE

This is to certify the installation bearing RR No: _____ _____serviced with electrical meter in the name of < Name of the Applicant > < address of the Applicant > with a sanctioned load of__ kVA under _____Tariff.

The certificate is issued as per request of the consumer

Signature and Seal of the issuing authority

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